

IN THE SUPREME COURT OF PAKISTAN
CONSTITUTIONAL BENCH
(Original/Appellate/Advisory Jurisdiction)

Present

Justice Amin-ud-Din Khan, Senior Judge
Justice Jamal Khan Mandokhail
Justice Muhammad Ali Mazhar
Justice Syed Hasan Azhar Rizvi
Justice Musarrat Hilali
Justice Naeem Akhter Afghan
Justice Shahid Bilal Hassan

**I.C.A. 5/2023 in C.P. 24/2023 &
C.M.A.10534/2023**

Shuhada Forum, Balochistan through its
Patron in Chief, Nawabzada Jamal Raisani,
Quetta Cantt and others **v.** Justice (R) Jawwad
S. Khawaja and others

and

**I.C.A.6/2023 IN C.P. 24/2023 &
C.M.A.10535/2023**

The Province of Punjab, through Secretary
Punjab, Lahore **v.** Jawwad S. Khawaja and others

and

**I.C.A.10/2023 IN C.P.26/2023 &
C.M.A.10536/2023**

Federation of Pakistan through the Secretary,
Ministry of Law and Justice, Islamabad **v.**
Karamat Ali and others

and

**I.C.A.11/2023 IN C.P.30/2023 &
C.M.A.10537/2023**

Federation of Pakistan through Secretary
Ministry of Law and Justice, Islamabad
v. Supreme Court Bar Association of Pakistan,
through its Secretary, Islamabad and others

and

**I.C.A.12/2023 IN C.P.35/2023 &
C.M.A.10538/2023**

Federation of Pakistan through Secretary,
Ministry of Law and Justice Islamabad
v. Supreme Court Bar Association of Pakistan,
through its Secretary, Islamabad and other

and

**I.C.A.13/2023 IN C.P.27/2023 &
C.M.A.10539/2023**

The Federation of Pakistan through the Secretary Ministry of Law and Justice, Islamabad **v.** Zaman Khan Vardag and others

and

**I.C.A.14/2023 IN C.P.24/2023 &
C.M.A.10540/2023**

Federation of Pakistan through the Secretary Law, Justice & Parliamentary Affairs Division, Ministry of Law & Justice Islamabad **v.** Jawwad S. Khawaja and others

and

**I.C.A.15/2023 IN C.P.35/2023 &
C.M.A.10541/2023**

The Province of Balochistan through the Chief Secretary Services & General Administration Department Quetta **v.** Supreme Court Bar Association of Pakistan, through its Secretary, Islamabad and others

and

**I.C.A.16/2023 IN C.P.26/2023 &
C.M.A.10542/2023
& C.M.A.597/2024**

The Province of Balochistan through the Chief Secretary Services & General Administration Department Quetta **v.** Karamat Ali and others

and

**I.C.A.17/2023 IN C.P.24/2023 &
C.M.A.10543/2023**

The Province of Balochistan through the Chief Secretary Services & General Administration Department Quetta **v.** Jawwad S. Khawaja and others

and

**I.C.A.18/2023 IN C.P.30/2023 &
C.M.A.10544/2023**

The Province of Balochistan through the Chief Secretary Services & General Administration Department Quetta **v.** Supreme Court Bar Association of Pakistan, through its Secretary, Islamabad and others

and

**I.C.A.19/2023 IN C.P.25/2023 &
C.M.A.10545/2023**

The Province of Balochistan through the Chief Secretary Services & General Administration Department Quetta **v.** Aitzaz Ahsan and others

and

I.C.A.20/2023 IN C.P.25/2023 & C.M.A.10546/2023

Federation of Pakistan thr. Secretary, M/O. Defence, Rawalpindi **v.** Aitzaz Ahsan and others

I.C.A.21/2023 IN C.P.28/2023 & C.M.A.10547/2023

Federation of Pakistan through, Secretary, Ministry of Defence, Rawalpindi **v.** Junaid Razzaq and others

and

I.C.A.22/2023 IN C.P.25/2023 & C.M.A.10548/2023

Federation of Pakistan thr. Secretary, Ministry of Interior, Islamabad **v.** Aitzaz Ahsan and others

and

I.C.A.23/2023 IN C.P.30/2023 & C.M.A.10549/2023

Federation of Pakistan through Secretary Ministry of Interior, Islamabad **v.** Supreme Court Bar Association of Pakistan, through its Secretary, Islamabad and others

and

I.C.A.24/2023 IN C.P.26/2023 & C.M.A.10550/2023 & C.M.A.598/2024

Federation of Pakistan through the Secretary, Ministry of Interior, Islamabad **v.** Karamat Ali and others

and

I.C.A.25/2023 IN C.P.28/2023 & C.M.A.10551/2023

Federation of Pakistan through, Secretary, Ministry of Interior, Islamabad **v.** Junaid Razzaq and others

(Appeals under Section 5 of Supreme Court (Practice and Procedure) Act, 2023 against the judgment of this Court dated 23.10.2023 passed in Constitution Petition No.24 of 2023, etc. challenging Trials of Civilians under the Army Act, 1952)

**For Appellant(s)/
Applicant(s):**

For Federation of Pakistan through M/o Law:	Mr. Mansoor Usman Awan, AGP Ch. Aamir Rehman, Addl. AGP Raja Muhammad Shafqat Abbasi, DAG Mr. Anis Muhammad Shahzad, AOR Mr. Jawaid Masood Tahir Bhatti, AOR Dr. Nazakat Ali <i>Bhand</i> , Asst Solicitor, M/o Law Mr. Hasan Mehmood, Legislative Advisor M/o Law (in ICAs No.10 to 14 & 22 to 25/2023)
For M/o Defence:	Khawaja Haris Ahmad, Sr. ASC <i>Assisted by Miss Zaynib Chaudhry, Advocate and Mr. Hamza Khalid, LLB (Hons)</i> Brig. (R) Falak Naz, Legal Advisor, M/o Defence Lt. Col. Zahid Hussain, LO, M/o Defence Lt. Col. Muhammad Ali, LO M/o Defence (in ICAs No.20 & 21/2023)
For Province of Balochistan:	Mr. Sikandar Bashir Mohmand, ASC Mr. M. Ayaz Khan Swati, Addl. AG Balochistan Mr. Tariq Aziz, AOR <i>Assisted by M/s Abdullah Noor, Advocate Hamza Azmat Khan, Advocate Barrister Khizer Hayat Khan, Barrister Imran Khan and Muhammad Arsal Kamran Advocate.</i> (in ICAs No.15 to 19/2023)
For Shuhada Forum Balochistan:	Mr. Shumail Butt, ASC (through video link from Peshawar) Mr. Mehmood A. Sheikh, AOR (in ICA No.5/2023)
For Province of Punjab:	Mr. Wasim Mumtaz Malik, Addl. AG Punjab Mr. Sanaullah Zahid, Addl. AG, Punjab (in ICA No.6/2023)
For Govt. of Sindh:	Mr. Saifullah, Addl. AG, Sindh Mr. Sibtain Mehmood, Addl. AG Sindh (Via video link, Karachi)
For Govt. of KP:	Mr. Shah Faisal Ilyas, Addl. AG KP

For the Respondents:

For Justice (R) Jawwad S. Khawaja:	Khawaja Ahmad Hosain, ASC <i>Assisted by Ms. Rida Hosain, Advocate</i> (in ICAs No.5, 6, 14 & 17/2023)
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For Lahore High Court Bar and Lahore Bar Associations:	Mr. Hamid Khan, Sr. ASC Mr. Muhammad Waqar Rana, ASC Mr. Ajmal Ghaffar Toor, ASC Syed Rifaqat Husain Shah, AOR (in ICAs No.5, 6, 11, 15 & 20/2023)
For Ch. Aitzaz Ahsan:	Sardar Muhammad Latif Khan Khosa, Sr. ASC Barrister Ch. Aitzaz Ahsan, Sr. ASC Mr. Shahbaz Khan Khosa, ASC <i>Assisted by Barrister Zunaira Fayyaz, M/s Sozain Jehan, Ghulam Murtaza Malik, Syed Mehmood ul Hassan Gilani and Usman Zakir Abbasi, Advocates.</i> (in ICAs No.19, 20 & 22/2023)
For Junaid Razzaq:	Mr. Salman Akram Raja, ASC <i>Assisted by M/s Asad Rahim Khan, Malik Ahsan Mehmood, Muhammad Hammad Amin, Atira Ikram, Raja Hamza Anwar, Wyena Qureshi, Minahil Fatima, M. Ali Talib, Muhammad Shakeel Mughal, Muhammad Hamza Aslam, Sardar Ahsan Raza and Malik Ghulam Sabir, Advocates.</i> (in ICAs No.21 & 25/2023)
For Karamat Ali, etc:	Mr. Faisal Siddiqui, ASC (in ICAs No.10, 16 & 24/2023)
For Imran Khan Niazi:	Mr. Uzair Karamat Bhandari, ASC Dr. Usman Mirza, AOR <i>Assisted by Mr. Ali Uzair Bhandari, Advocate.</i> (in ICAs No.19, 20 & 22/2023)
For Aamir Sabir:	Mr. Abid S. Zuberi, ASC Ms. Bushra Qamar, ASC <i>Assisted by M/s Amna Khalili, Saif Shahid and Ashar Khan Advocates</i> Mr. Muqtedir Akhtar Shabbir, ASC (via video link from Lahore) (in ICA No.12/2023) Mr. Zaman Khan Vardag, ASC, in-person (via video link from Lahore) (in-person in ICA No.13/2023)
For Supreme Court Bar Association:	Mian Rauf Atta, ASC/President, Mr. Muhammad Aurangzeb Khan, ASC/Acting Secretary (in ICAs No.11, 12, 15, 18 & 23/2023)
Voluntarily appeared With permission of the Court:	Mr. Hafeez Ullah Khan Niazi, in-person. (<i>father of one of the convicts</i>)

Assisted by: Miss Maira Hassan, Judicial Law Clerk

Dates of hearings: 9th, 10th, 12th and 13th December 2024, 7th to 10th, 13th to 17th, 28th to 31st, January, 3rd, 4th, 10th to 13th and 18th to 20th 24th to 27th February, 3rd to 6th, 10th to 13th March, 7th to 9th, 14th to 18th and 28th April and 5th May, 2025.

J U D G M E N T

Amin-ud-Din Khan, J. Through this appeal (ICA No.5 of 2023) filed under section 5 of the Supreme Court (Practice and Procedure) Act, 2023 appellant has challenged the order dated 23.10.2023 passed in Constitution Petition No. 24 of 2023 (along with Constitution Petition Nos. 25, 26, 27, 28, 30 and 35 of 2023) whereby **(i)** by a majority of 4:1, clause (d) of sub-section (1) of Section 2 of the Pakistan Army Act, 1952 [in both of sub-clauses (i) & (ii)] and sub-section (4) of Section 59 of the said Act were declared to be *ultra vires* the Constitution and of no legal effect; while, without prejudice to the generality of the foregoing, the 5 Member Bench unanimously held that **(ii)** the trials of civilians and accused persons, being around 103 persons ... identified in the list provided to the Court ... by way of C.M.A.No.5327 of 2023 in Constitution Petition No. 24 of 2023 and all other persons who are now or may at any time be similarly placed in relation to the events arising from and out of 9th and 10th May, 2023 shall be tried by Criminal Courts of competent jurisdiction established under the ordinary and/or special law of the land in relation to such offences of which they may stand accused; and, **(iii)** declared that any action or proceedings under the Pakistan Army Act, 1952, in respect of the aforesaid persons or any other persons so similarly placed (including but not limited to trial by Court Martial) are and would be of no legal effect.

2. Brief facts are that pursuant to the incidents of 09.05.2023, which involved targeted attacks, *inter alia*, on numerous military installations and establishments throughout the country, several F.I.Rs were registered against the perpetrators. These F.I.Rs include, *inter alia*,

(i) F.I.R.No.1271/2023 registered at Police Station Gulberg, Lahore; (ii) F.I.R. No. 768/2023 at Police Station Shadman, Lahore; and (iii) F.I.R. No. 27/2023 registered at Police Station Sarwar Road, Lahore; (iv) F.I.R. registered in District Abbottabad on 10th May, 2023 at Police Station Cantonment, Abbottabad Cantt.; (v) F.I.R. No. 708/2023 registered at Police Station R.A. Bazar, Rawalpindi; (vi) F.I.R. No. 832/2023 registered at Police Station CivilLine, Faisalabad; and (vii) F.I.R. No. 852/2023 registered at Police Station Race Course, Lahore, as noted in Constitution Petition No. 25/2023.

3. That, although, initially, in some of these F.I.Rs, the offences covered by the Pakistan Army Act, 1952 were not mentioned, subsequently, these offences were also added, as the same stand disclosed, inter alia, by the contents of these F.I.Rs.

4. That, accordingly, as the offences disclosed by the contents of the F.I.R fell within the ambit of the Pakistan Army Act, 1952, a large number of persons (presently 103 in number) found involved in such offences were taken into custody for purposes of trial under the said Act.

5. That it is in the aforementioned circumstances that, *inter alia*, Constitution Petition No. 24/2023 was filed by Respondent No. 1, challenging the trial of civilians before military courts under the Pakistan Army Act, 1952, on multiple grounds, including the ground that such trial was violative of Articles 4, 9, 10A and 175 of the Constitution and, therefore, *ultra vires* the Constitution, *void ab initio* and of no legal effect. Similar other petitions mentioned supra were also filed.

6. That for facility of reference, the multiple prayers made in the Constitution Petition No.25 of 2023 are reproduced hereunder:

In light of the foregoing, it is most respectfully prayed that this Honourable Court may graciously be pleased to:

- i. Accept the instant Petition;
- ii. Declare that the trial of civilians before military courts under the Army Act, 1952, is not permitted by and is violative of, inter alia, Articles 4, 9, 10A and 175 of the

Constitution, and such trials for the offences allegedly committed during the 9th May incidents and covered under the various FIRs mentioned in paragraph 6(e) above are *ultra vires* the Constitution, void *ab initio* and of no legal effect and the decision of the Federal Government dated 19 May 2023 rubber stamping the decision of the Corps Commanders Conference dated 15 May 2023 to conduct such trials is liable to be set aside;

- iii. Declare that Sections 2(1)(d)(ii) and 59(4) of the Army Act, 1952, are *ultra vires* the Constitution and void, or in the alternative cannot be invoked for the offences allegedly committed during the 9 May incidents and covered under the various FIRs mentioned in paragraph 6(e) above;
- iv. Declare that Section 94 of the Army Act, 1952 and the 1970 Rules are inherently discriminatory, in direct violation of *inter alia*, Articles 25 and 175 of the Constitution and are, therefore, *ultra vires* the Constitution and void;
- v. Declare that the referral of the trials of various accused by the Anti-Terrorism Courts to the military courts under Sections 94 and 95 of the Army Act, 1952 and the 1970 Rules is the result of a lack of application of mind by the learned Anti-Terrorism Courts, and hence arbitrary, discriminatory and in violation of Sections 94 and 95 of the Army Act, 1952 as well as Article 25 and 175 of the Constitution and consequently, are void;
- vi. Issue a writ of *prohibition* against the constitution of military courts and the referral of civilians' case for trial before military courts, at least for the offences allegedly committed during the 9 May incidents, and also declare that any cases referred and/or trials commenced till date are in violation of the law and Constitution;
- vii. Issue a writ in the nature of *habeas corpus* for the release of all persons handed over to or picked up by the military authorities for trial before military courts for the offences allegedly committed during the 9 May incidents and return the custody of all such persons to the civilian institutions which are vested with the jurisdictional, lawful and constitutional mandate to determine and adjudge the fate of such persons;
- viii. Issue a writ of *mandamus* to direct all relevant Federal and Provincial institutions and authorities, under the supervision of this Honourable Court, to probe into and discover the true facts surrounding the 9 May incidents, especially the seemingly deliberate absence of resistance on the part of the police and other law enforcing agencies.

Any other relief deemed just and equitable in all the circumstances of the case may also graciously be granted by this Honourable Court.

6) That similar objections to the trial of civilians by courts martial under the Pakistan Army Act, 1952 were taken by the various other sets of Petitioners in Constitution Petitions No.24, 26, 27, 28 and 30 of 2023.

7) That all these Petitions were clubbed and heard together and finally decided by the learned 5 Member Bench of this Hon`ble Court by releasing a Short Order dated 23.10.2023 (Impugned Order), which reads as follows:

ORDER OF THE COURT IN THE IMPUGNED JUDGMENT

For detailed reasons to be recorded later, and subject to such amplification and/or explanation therein as is considered appropriate, these petitions are decided in the following terms:

- i. It is hereby declared by Mr. Justice Ijaz ul Ahsan, Mr. Justice Munib Akhtar, Mr. Justice Sayyed Mazahar Ali Akbar Naqvi and Mrs. Justice Ayesha A. Malik that clause (d) of subsection (1) of Section 2 of the Pakistan Army Act, 1952 (in both of its sub clauses (i) & (ii)) and subsection (4) of Section 59 of the said Act are ultra vires the Constitution and of no legal effect.
- ii. Without prejudice to the generality of the foregoing the trials of civilians and accused persons, being around 103 persons who were identified in the list provided to the Court by the learned Attorney General for Pakistan by way of CMA No. 5327 of 2023 in Constitution Petition No. 24 of 2023 and all other persons who are now or may at any time be similarly placed in relation to the events arising from and out of 9th and 10th May, 2023 shall be tried by Criminal Courts of competent jurisdiction established under the ordinary and/or special law of the land in relation to such offences of which they may stand accused.
- iii. It is further declared that any action or proceedings under the Army Act in respect of the aforesaid persons or any other persons so similarly placed (including but not limited to trial by Court Martial) are and would be of no legal effect.
- iv. Mr. Justice Yahya Afridi reserves judgment as to para (i) above, but joins the other members of the Bench as regards paras (ii) and (iii).

7. As per the Federation of Pakistan, the appellant, impugned Order is illegal and without jurisdiction, inter alia, on the following grounds:

- A. That the Impugned Order suffers from an inherent jurisdictional defect in that it does not at all address or even remotely refer to the question of maintainability of the Constitution Petition under Article 184(3) of the Constitution, and that too despite the fact that a specific objection to the maintainability of the Constitution Petition was taken by the Federation in extenso in paras 6-11 (under the heading "Maintainability") of its Concise Statement, and, in support of this objection lengthy arguments were addressed at the bar by the learned Attorney General for Pakistan.
- B. That without recording its finding on the question of maintainability of the Constitution Petition, the learned Bench could not have proceeded to decide the same on merits.
- C. That it is a settled principle of law that where an objection is taken as regards the jurisdiction of the Court to entertain a *lis*, the question of jurisdiction is to be taken up and decided in the first instance, and, in so far as the learned Bench has acted in breach of this settled principle of law, the Impugned Order passed by it is manifestly without jurisdiction and *void ab initio*.
- D. That the Impugned Order also suffers from another jurisdictional defect in that it does not return any finding on, rather fails to even address the legal proposition urged in the Concise Statement (under the heading "Applicability of Fundamental Rights on Trials under the Army Act"), and extensively argued at the bar, that in the light of the provisions of sub-clause (a) to clause (3) of Article 8 of the Constitution, law, relating to members of the Armed Forces for the purpose of ensuring the proper discharge of their duties or the maintenance of discipline among them, are not susceptible to be adjudged on the touchstone of the Fundamental Rights as contained in Chapter 1 of the Constitution, and that, on this ground too, the Constitution Petition filed under Article 184(3) of the Constitution was not maintainable before this august Court.
- E. That, inter alia, the Pakistan Army Act, 1952 is a "law" relating to the Armed Forces of Pakistan for the purpose of ensuring the proper discharge of their duties and/or the maintenance of discipline among them, and, as such, the provisions thereof, and any action taken thereunder, are immune from being examined on the touchstone of the Fundamental Rights in terms Chapter 1, of Part (II),

Articles 8-9 and Chapter 1 of Part (VII), Article 184(3) of the Constitution.

- F. That subsequent addition to the Fundamental Rights in Chapter 1 of Part II of the Constitution per se has no bearing on the provisions of sub-clause (a) to Clause (3) of Article 184 of the Constitution.
- G. That the Impugned Order suffers from a further inherent jurisdictional defect, in that, in declaring clause (d) of sub-section (1) of Section 2 of the Pakistan Army Act, 1952 [in both of its sub-clauses (i) and (ii)] and sub-section (4) of Section 59 of the said Act as "ultra vires the Constitution and of no legal effect", the learned Bench has manifestly differed and deviated from the judgement passed by a learned Bench of equal strength in Brig. (Retd.)F. B. Ali's case (**PLD 1975 SC 506**) whereby these very provisions of the Pakistan Army Act, 1952 have been held to be *intra vires* the Constitution, while it is a settled principle of law that where a Bench disagrees with the opinions rendered earlier by a Bench of equal strength, it cannot give a judgement contrary thereto, rather it is incumbent upon the Bench to refer the matter for placing it for decision before a larger Bench.
- H. That the Impugned Order, on the face of it, lacks material particulars, and, as such, is no Order in the eye of law, inasmuch as, though it has declared clause (d) of sub-section (1) of Section 2 of the Pakistan Army Act, 1952 [in both of its sub-clauses (i) and (ii)] and sub-section (4) of Section 59 of the said Act, *ultra vires* the Constitution, there is not a single provision of the Constitution identified in the Impugned Order to which the said provisions of the Pakistan Army Act, 1952 may have been held *ultra vires*.
- I. That in any case there is no legal basis for holding that clause (d) of sub-section (1) of Section 2 of the Pakistan Army Act, 1952 [in both its sub-clauses (i) and (ii)] and sub-section (4) of Section 59 of the Act are *ultra vires* the Constitution.
- J. That the finding given in para (ii) of the Impugned Order and the declaration made in para (iii) **ibid** are, in effect, corollaries to the declaration given by the learned Bench in para (i) *ibid*, and, as such, suffer from the same legal and jurisdictional defects as the last-mentioned declaration.
- K. That in passing the Impugned Order the learned Bench has traversed beyond the jurisdiction vested in this Court by law, in that, in doing so, the learned Bench has, in effect, excluded from the ambit of the Pakistan Army Act, 1952, all those civilians from other States, and "enemy" as defined in sub-section (8) of Section 8 *ibid*, who are, or may be guilty of committing the offences as specified in clause

(d) of sub-section (1) of Section 2 of the Pakistan Army Act, 1952, thereby considerably undermining the ability of the Armed Forces to effectively discharge their constitutional duty to defend Pakistan against external aggression or threat of war, and thus violating the very letter and purport of Article 245 (1) of the Constitution.

- L. That seducing or attempting to seduce any person who is subject to the Pakistan Army Act, 1952, from his duty or allegiance to Government, or commission of any offence under the Official Secrets Act, 1923 in relation to, inter alia, any work of defence, arsenal, military establishment or station, or otherwise in relation to, inter alia, military affairs of Pakistan, by civilians of one's own country, are acts that have a direct nexus with the Armed Forces, and, as such, are triable under the Pakistan Army Act, 1952, as held, in, and on the touchstone of the principle, inter alia, in Brig. (Retd.) F.B. Ali's case *supra*.
- M. That the Courts under the Pakistan Army Act, 1952 do not form part of the judicial hierarchy contemplated by Articles 175 and 203 of the Constitution, and, as such, neither the provisions of clause (3) of Article 175 of the Constitution nor those of Article 203 *ibid* are applicable to or have any relevance to the said Courts.
- N. That in any case the process of trial contemplated by the Pakistan Army Act, 1952 is consistent with the recognised principles of criminal justice as held in Brig. (Retd.) F.B. Ali's case (**PLD 1975 SC 506**), Shahida Zahir Abbasi's case (**PLD 1996 SC 632**) and re-affirmed in the majority judgement of District Bar Rawalpindi's case (**PLD 2015 SC 401**), and, as such, no objection as to the fairness of the trial of civilians under the Pakistan Army Act, 1952, is sustainable in the eye of law.

8. Learned counsel for the appellant argues that when Sub-Article (3) of Article 8 of the Constitution gives exemption from applicability of Sub-Article (1) & (2) of this Article, in that eventuality the petitions under Article 184(3) of the Constitution of Islamic Republic of Pakistan filed by respondents for securing the impugned order were not competent. Through the impugned order the Court has wrongly scrutinized the provisions of Army Act challenged before the Court on the touchstone of Clause 5 of Article 8 of the Constitution, which is not relevant. While referring Para 53 of the impugned judgment, stated that it is a classic example of reading down the Constitution when on the basis of Clause 5 of Article 8 the provisions of law have been declared ultra vires the Constitution. Argues that Sub Clause (5) of Article 8

relates to Article 232 of the Constitution; that even in the impugned order it is admitted in Para 47 of the order that “once it is shown that a law comes within the ambit of Article 8(3)(a), the denial of and derogation from fundamental rights, in their totality, is immediate and absolute. The provision is therefore not simply an “exception”; it is in fact exclusionary. Learned counsel further argues that the interpretation through the impugned order of Clause 5 of Article 8 makes Article 233(2) redundant which is not permissible under the law. The case law cited by the learned counsel for the appellant will be discussed while discussing the arguments of learned counsel for the respondents defending the judgment and the case law cited by them in juxta position with the law relied by both the sides. While arguing the appeal with regard to findings recorded by Mrs. Justice Ayesha A. Malik on Article 10-A states that in the said order, the referred Clause (a) of Sub-Article (3) of Article 8 has not been mentioned. When Sub-Article (3) of Article 8 is applicable the fundamental rights provided in Chapter 1 of Part II of the Constitution will not be available. Refers to Paragraph No.27 of the order of Mrs. Justice Ayesha A. Malik that “this is precisely why the Constitution brings such matters under the exception to Article 8(1)(2) in the form of Article 8(3)(a) of the Constitution which excludes the operation of fundamental rights when it relates to the members of the armed forces who are charged with the maintenance of public order in discharge of their duties and the maintenance of discipline amongst them.” States that it is re-writing of the Constitution whereas in the Constitution it is mentioned in Clause (3)(a) “any law relating to members of the Armed Forces”. Argues that notice of Order XXVII-A of the CPC was not issued to the learned Attorney General as referred to in orders dated 22.6.2023 and 21.7.2023. Though on the Court’s direction the learned counsel for the appellant has thoroughly argued that matter with regard to the procedure under the Military Court Act and Rules and trial of the accused under the said Act which we believe is not much relevant for determination of appeals in hand.

9. Mr. Sikandar Bashir Mohmand, ASC for Government of Balochistan has adopted the arguments of Khawaja Haris Ahmad, ASC. Khawaja Ahmad Hosain, ASC for Mr. Jawwad S. Khawaja, Ex-Chief

Justice of Pakistan, who was one of the petitioners in a petition filed under Article 184(3), states that he has filed written formulation in the shape of C.M.A.No.7341 of 2024 as well as 5387 of 2023. His earlier written submissions filed in CP are in the shape of C.M.A.No.5387 of 2023. He argued that the application of Article 10-A is not restricted. Mr. Salman Akram Raja, ASC for respondent Junaid Razzaq in ICA No.21 of 2023 as well as counsel for Ch. Aitzaz Ahsan /respondent No.1 in ICA No.20 of 2023 has argued the matter and supported the impugned order. He has also discussed in detail the previous judgments of this Court which will be dilated upon in the later part of this judgment. He argued that he never supports any judgment of even this Court which is on the basis of reading in or reading down the Constitution. He argued that he agrees with result of striking down the provisions of Army Act but he is not in agreement with the reasons and the basis of striking down the provisions of Army Act by the Majority judgment that is impugned in these appeals and states that he can differ from the reasons and argues on the basis of his understanding on the basis of interpretation of the Constitution as well as previous judgments of this Court. Specifically, with regard to the findings recorded by the majority judgment upon Article 175 of the Constitution while Mr. Salman Akram Raja concluded his arguments, on the next date Sardar Muhammad Latif Khan Khosa, ASC appeared and before start of his arguments Ch. Aitzaz Ahsan appeared and stated that he does not own the arguments of Mr. Salman Akram Raja, ASC as the same were without his instructions and Sardar Muhammad Latif Khan Khosa will argue as his counsel. Sardar Muhammad Latif Khan Khosa, ASC supported the impugned judgment. After that Mr. Uzair Karamat Bhandari, ASC appeared for Mr. Imran Ahmad Khan Niazi, the respondent. He argued that the petition was maintainable and further that under the Constitution of Islamic Republic of Pakistan, Armed Forces cannot exercise judicial powers and further that any of the fundamental rights cannot be denied to the civilians. Argues regarding Article 243 which is about the command of Armed Forces and also relates to Article 268, the adaptation of certain laws. While arguing doctrine of severance stated that some part of Army Act is valid and

some invalid. As per his arguments Armed Forces cannot exercise powers with regard to civilians. Mr. Faisal Siddiqui, ASC states that he does not challenge vires of the provisions of Army Act, but he challenges the trial of civilians by the Military Courts on the ground of procedure provided in the said law. As per his understanding, the trial of civilians is not permissible under the Military laws. Mr. Abid S. Zuberi, ASC, also argued on behalf of respondent Nos. 2 to 4 in ICA No. 12 of 2023. As per his arguments, provisions of Army Act are applicable to members of the Armed Forces only. He has argued with regard to Article 260 of the Constitution and also relied on the case law which will be discussed in the later part of the judgment. Mr. Hamid Khan, Sr. ASC also assisted the Court for respondent Lahore Bar Association and stated the history of the Military Law and its amendment and various trials under Military Act as well as Special Tribunal Acts. Khawaja Haris Ahmad, ASC in rebuttal also argued the matter to reply to the points raised by the learned counsel for the respondents.

Now we consider and note pointwise counter arguments of learned counsel for the parties for decision of each issue raised before this Court for determination.

Submissions on Behalf of the Appellants

A. Maintainability

- i. The primary submission urged by learned counsel for the appellants concerned the maintainability of the Constitution Petitions under Article 184(3) of the Constitution. It was asserted that this jurisdictional provision mandates the satisfaction of a dual threshold: first, that the matter involves a question of “public importance”; and second, that it relates to the “enforcement of Fundamental Rights.” The appellants contended that both limbs must co-exist conjunctively and that neither can be presumed nor substituted by generalised concerns or policy-level disagreements. In their view, the petitions under scrutiny had failed to establish a direct and

justiciable grievance within the meaning of enforceable rights under Part II of the Constitution.

- ii. It was argued that the petitioners had failed to identify a specific act, omission, or legal process that violated their own fundamental rights, or to show that they were directly aggrieved within the parameters of locus standi developed by this Court's jurisprudence. Rather, the petitions were premised on abstract and hypothetical apprehensions regarding the application of the Army Act to unnamed or undetermined persons, thereby lacking the concrete adversity required to invoke this Court's extraordinary jurisdiction.
- iii. The appellants highlighted that the impugned judgment failed to return any definitive finding on this threshold objection. They argued that such omission was not procedural but jurisdictional, and therefore vitiated the entirety of the subsequent adjudication.
- iv. Furthermore, the appellants submitted that a petition which seeks to question statutory vires without first satisfying the enforceability of a personal right amounts to an indirect invocation of the Court's advisory or legislative jurisdiction—functions which lie outside the purview of Article 184(3). It was contended that even where public interest litigation has been entertained under this Article, the Court has consistently demanded a demonstrable nexus between the petitioner and the alleged rights infringement. The counsel underscored that absent such a nexus, the adjudication of constitutionality would be not only premature but also constitutionally illegitimate.
- v. The omission by the impugned Bench to pronounce upon the threshold maintainability rendered the judgment susceptible to annulment, as the assumption of jurisdiction without explicit analysis constitutes, in law, an excess of jurisdiction. The appellants characterised this omission as a fatal flaw that undermined the very competence of the Bench to adjudicate the matter, thereby justifying the invocation of appellate review

under section 5 of the Supreme Court (Practice and Procedure) Act, 2023.

B. Exclusion of Fundamental Rights under Article 8(3)(a) of Constitution

i. The appellants advanced their second principal submission on the constitutional implications of Article 8(3)(a), asserting that the Army Act, being a law enacted to regulate the conduct of members of the Armed Forces, enjoys a textually embedded exclusion from the Chapter on Fundamental Rights. Article 8(3)(a) provides in categorical terms that nothing in Article 8 shall apply to any law relating to members of the Armed Forces for the purpose of ensuring the proper discharge of their duties or the maintenance of discipline. The appellants contended that this provision creates a deliberate constitutional carve-out, thereby immunising the Army Act from challenge on the basis of Articles 4, 9 or 10A, insofar as its provisions serve the objectives stated in Article 8(3)(a).

ii. It was submitted that the impugned judgment, while acknowledging the exclusionary scope of Article 8(3)(a) in paragraph 47, failed to give effect to its consequences. Instead, the learned Bench proceeded to examine the impugned provisions through the lens of Articles 9 and 10A, thereby engaging in a form of constitutional scrutiny that the text of Article 8 expressly forbids in such cases. The appellants argued that once it is established that a statute qualifies under Article 8(3)(a), the inquiry into its compatibility with fundamental rights becomes non-justiciable, as the Constitution itself withdraws such laws from the jurisdiction of fundamental rights review.

iii. In support, the appellants relied on the interpretive approach adopted in *Brigadier (Retired) F.B. Ali v. The State* (PLD 1975 SC 506), wherein this Court upheld the constitutionality of trying civilians under the Army Act in exceptional cases implicating national security, and recognised

the institutional logic of a parallel military justice regime. It was further argued that the constitutional design in this regard is not accidental but deliberate, reflecting the historical experience and institutional necessities inherent in military discipline.

iv. The appellants further criticised the impugned judgment for its reliance on Article 8(5) as a counterbalance to Article 8(3)(a). They argued that Article 8(5), which provides that fundamental rights shall not be suspended except as provided by the Constitution, applies only in the context of constitutional emergencies or express suspensions under Article 233. To invoke this provision to negate or override the specific exemption granted under Article 8(3)(a) was, in their submission, a serious doctrinal error that amounted to rewriting the constitutional text.

v. It was contended that Article 8 must be interpreted as an internally coherent provision, where clause (3)(a) operates as a structural exception and clause (5) is limited in application. The impugned judgment, by invoking clause (5) to dilute clause (3)(a), disrupted this coherence and adopted a reading that was unsupported by precedent and contrary to settled principles of constitutional interpretation.

vi. The appellants also submitted that constitutional exclusions, where expressly granted, must be respected in their full scope and cannot be nullified by inference or implication. They referred to the reasoning of the Federal Shariat Court in “Colonel (Retired) Muhammad Akram v. Federation of Pakistan” (PLD 2009 FSC 36), which upheld the legitimacy of the Army Act within its domain, reinforcing the point that military justice, though distinct, is constitutionally valid and immune from certain forms of judicial scrutiny.

vii. In view of these submissions, the appellants contended that the very foundation of the impugned judgment’s reasoning, namely that the Army Act’s provisions were invalid for violating fundamental rights, was fundamentally misconceived. Where the Constitution itself excludes a class of laws from the

application of fundamental rights, any judicial inquiry purporting to reintroduce such scrutiny lacks constitutional warrant. The resultant declaration of invalidity was, therefore, ultra vires and unsustainable in law.

C. Deviation from Binding Precedent—F.B. Ali Case

i. The third key submission made by the appellants was grounded in the doctrine of precedent and the binding authority of this Court's earlier pronouncements, specifically the decision in Brigadier (Retired) F.B. Ali v. The State (PLD 1975 SC 506). It was argued that the impugned provisions of the Army Act, namely clause (d) of section 2(1) and sub-section (4) of section 59, had previously been subjected to judicial scrutiny in F.B. Ali and were upheld by a Bench of coordinate strength. In that case, the Supreme Court had explicitly sustained the constitutional validity of subjecting certain civilians to trial under military law in circumstances involving offences closely connected with national defence and military establishments.

ii. The appellants submitted that F.B. Ali represents a definitive and binding articulation of constitutional principle regarding the interface between military justice and fundamental rights. They emphasised that the petitioners in that case had similarly challenged the trial of civilians under the Army Act by invoking the protection of fundamental rights. Nonetheless, the Court in F.B. Ali affirmed that in exceptional cases of national importance implicating military security, Parliament may lawfully legislate to subject civilians to military jurisdiction, provided such legislation meets the tests of rationality, necessity, and proximity to military objectives.

iii. In this context, the appellants contended that the impugned judgment, in striking down the very provisions upheld in F.B. Ali, failed to discharge the constitutional burden of demonstrating why that precedent was distinguishable or wrongly decided. They argued that the judgment under appeal did not declare F.B. Ali per incuriam, nor did it refer the question to a larger Bench for reconsideration. This omission, it was

submitted, amounted to a breach of judicial discipline and a violation of the doctrine of stare decisis, which is essential to the integrity and stability of constitutional adjudication.

iv. The appellants further relied on the principle enunciated in *Asad Ali v. Federation of Pakistan* (PLD 1998 SC 161), wherein this Court held that a Bench of equal strength is bound by prior precedent and may not depart from it except by referring the matter to a larger Bench. This principle was reaffirmed in *Muhammad Tariq Badr v. National Bank of Pakistan* (2013 SCMR 314), which underscored that a coordinate Bench is under an institutional obligation to follow earlier decisions unless exceptional circumstances are demonstrated and the matter is formally escalated.

v. It was the appellants' case that the impugned judgment had not only failed to comply with this principle but had also engaged in a form of reasoning that amounted to an implicit overruling without justification. The constitutional validity of the Army Act's provisions could not be re-litigated by a Bench of equal composition without confronting and resolving the binding effect of *F.B. Ali*. By failing to do so, the impugned judgment compromised the consistency of this Court's jurisprudence and invited legal uncertainty regarding the interpretation of Article 8 and Article 10A.

vi. In conclusion, the appellants submitted that the deviation from *F.B. Ali*, absent a formal reconsideration by a larger Bench, rendered the impugned judgment not only erroneous but procedurally defective. This alone, in their submission, constituted sufficient ground for appellate intervention and reversal of the findings rendered therein.

D. Absence of Specific Constitutional Conflict.

i. The appellants next advanced a critique concerning the analytical structure of the impugned judgment, focusing on what they termed a failure to establish a specific and demonstrable constitutional conflict. It was submitted that constitutional

invalidation, particularly of primary legislation, cannot proceed on the basis of abstract propositions or generalised dissatisfaction with statutory language. Rather, the Court is bound to identify with precision the particular provisions of the Constitution that are violated, and to establish how the impugned statutory provisions transgress those constitutional safeguards.

ii. In this context, the appellants submitted that the judgment under appeal failed to engage in a structured or reasoned analysis correlating clause (d) of section 2(1) and sub-section (4) of section 59 of the Army Act with specific constitutional prohibitions. A mere invocation of Articles 9 or 10A, without an articulated inquiry into the language, scope, and historical function of the impugned statutory provisions, was insufficient, they argued, to sustain a declaration of unconstitutionality. The appellants emphasised that this deficiency rendered the judgment conclusory rather than reasoned, and deprived it of the analytical rigour necessary for a valid exercise of constitutional review.

iii. In support of this submission, learned counsel for the appellants drew a distinction between *prima facie* textual inconsistency and judicial dissatisfaction with legislative policy. It was contended that the Army Act, particularly the provisions extending jurisdiction over civilians, is narrowly drawn and is circumscribed by procedural and evidentiary thresholds. The language of section 2(1)(d) and section 59(4) does not create a roving or unbounded jurisdiction, but is conditioned upon the nature of the offence, the identity of the accused, and the context in which the conduct is alleged to have occurred. The judgment, by failing to account for these legislative safeguards, was said to have misapprehended the purpose and function of the provisions.

iv. The appellants also cited comparative constitutional jurisprudence, including decisions from the Indian and United Kingdom jurisdictions, to argue that constitutional courts have consistently required a high threshold for judicial invalidation of

legislation. In their submission, constitutional review must be grounded in a demonstrable breach of express constitutional text, rather than inferences drawn from broader doctrinal concerns. The failure of the impugned judgment to meet this standard, they argued, renders it vulnerable to reversal.

v. The appellants urged that declaratory relief in constitutional matters cannot be founded on speculation or dissatisfaction with legislative policy. It must be grounded in the identification of a clear and irreconcilable inconsistency between a statutory provision and a constitutional command. In the absence of such a finding, the impugned judgment, they submitted, lacked the constitutional authority to invalidate the statutory provisions in question.

E. Critique Concerning the Analytical Structure of the Impugned Judgment.

i. The appellants next advanced a critique of the analytical structure of the impugned judgment, asserting that it failed to establish a specific and demonstrable constitutional conflict. They submitted that constitutional invalidation, particularly of primary legislation, must not rest on abstract propositions or generalised dissatisfaction with statutory language. Rather, the Court is obliged to identify with precision the specific constitutional provisions that are allegedly violated and to demonstrate how the impugned statutory provisions transgress those safeguards.

ii. The appellants argued that the judgment under appeal did not undertake a structured or reasoned analysis connecting clause (d) of section 2(1) and sub-section (4) of section 59 of the Army Act with any particular constitutional prohibition. A cursory reference to Articles 9 or 10A, without detailed inquiry into the language, scope, and legislative purpose of the relevant provisions, was, in their view, inadequate to justify a declaration of unconstitutionality. This lack of analytical rigour, they

contended, rendered the judgment conclusory and deficient as a valid exercise of constitutional review.

iii. Learned counsel for the appellants emphasised the distinction between a textual inconsistency with constitutional norms and mere judicial dissatisfaction with legislative policy. They contended that the Army Act provisions in question are narrowly framed and contain procedural and evidentiary safeguards. The jurisdiction under section 2(1)(d) and section 59(4) is not general or unrestrained but is triggered only where the offence, the accused, and the surrounding context meet specific statutory criteria. The impugned judgment, they argued, failed to recognise these safeguards and misconstrued the intended scope and function of the provisions.

iv. The appellants cited comparative constitutional jurisprudence from India and the United Kingdom to support the proposition that judicial invalidation of legislation must meet a high threshold. They argued that constitutional review requires a clear and demonstrable breach of explicit constitutional text and cannot rest on broader doctrinal inferences or normative disagreement with legislative choices. By failing to adhere to this standard, the impugned judgment was said to be vulnerable to reversal.

v. The appellants further submitted that declaratory relief in constitutional litigation must rest on the identification of a specific and irreconcilable inconsistency between a legislative provision and a constitutional mandate. In the absence of such a finding, the judiciary cannot invalidate legislation based merely on perceived inadequacies in policy design or institutional preference. Accordingly, they argued that the impugned judgment lacked the constitutional basis to set aside the challenged provisions.

vi. In addition, the appellants contended that the impugned provisions of the Army Act serve a legitimate constitutional and legislative purpose closely tied to national security. Clause (d) of section 2(1) and sub-section (4) of section 59 are not arbitrary enactments but are narrowly tailored to address conduct that undermines military operations, institutional discipline, and the defence infrastructure of the State. These provisions are only engaged in exceptional circumstances involving a direct and substantial nexus between the alleged offence and the Armed Forces, including acts of sabotage, espionage, incitement, or insubordination.

vii. The appellants submitted that such offences cannot be effectively addressed through the ordinary criminal justice system, which lacks the procedural design and institutional insight required to assess and respond to security-sensitive conduct within or around military environments. The impugned provisions, in their view, fill this operational gap and ensure that acts threatening the Armed Forces can be prosecuted within a legal regime specifically created for that purpose.

viii. In support of their argument, the appellants referred to Article 245(1) of the Constitution, which mandates the Armed Forces to defend Pakistan against external aggression and internal disorder. This constitutional duty, they argued, includes the legislative authority to establish legal frameworks that support the operational mandate of the military. The Army Act, therefore, constitutes a constitutionally sanctioned tool enabling the Armed Forces to maintain institutional readiness and respond effectively to threats.

ix. The appellants also relied on analogous legal frameworks from comparative jurisdictions, including the United States Uniform Code of Military Justice and the Indian Armed Forces (Special Powers) Act. These regimes, they noted, permit

military jurisdiction over civilians under limited and exceptional conditions related to national defence or restricted military zones, provided that basic procedural protections are observed.

x. Furthermore, the appellants underscored that the events of 9 and 10 May 2023 involved targeted and coordinated attacks against critical military installations. In such a context, invoking military jurisdiction was not a matter of expedience but a constitutional necessity. The removal of such jurisdiction, they contended, would expose national defence institutions to legal and operational vulnerabilities without a viable prosecutorial alternative.

xi. In conclusion, the appellants submitted that the impugned judgment misunderstood both the purpose and constitutional standing of the challenged provisions. By invalidating section 2(1)(d) and section 59(4), the judgment undermined the constitutional framework under Article 245 and disregarded the legislative competence to craft tailored mechanisms for national defence. The provisions in question, in their considered view, do not violate constitutional rights but form an indispensable component of the legal structure for safeguarding national security.

F. Purpose of the Impugned Provisions and National Security Imperative

i. The appellants next addressed the question of procedural fairness, contending that the Army Act incorporates safeguards that are consistent with the requirements of due process and fair trial as recognised in constitutional and comparative jurisprudence. They rejected the characterisation of military trials as inherently deficient or lacking in transparency, arguing instead that the procedural framework provided under the Army

Act, particularly post-amendment developments, is both comprehensive and legally sufficient.

ii. In support of this submission, learned counsel referred to the jurisprudence of this Court in *Shahida Zahir Abbasi v. President of Pakistan* (PLD 1996 SC 632), where it was held that the Army Act does not, per se, violate the principles of natural justice or the requirements of fair trial. The Court, in that case, examined the procedural regime under the Act and found that accused persons were entitled to be informed of the charges, to be represented by counsel, to cross-examine witnesses, and to appeal against convictions. These elements, the appellants argued, are central to any fair trial regime and are expressly provided under the Army Act.

iii. Further reliance was placed on *District Bar Association Rawalpindi v. Federation of Pakistan* (PLD 2015 SC 401), wherein this Court, while reviewing the constitutionality of Military Courts constituted under the Twenty-First Amendment, reaffirmed that the existence of a separate military justice system does not in itself offend Article 10A of the Constitution, provided that basic procedural guarantees are observed. The appellants submitted that the observations made in that case continue to apply with full force to the present proceedings.

iv. It was emphasised that the procedural architecture of the Army Act includes safeguards such as pre-trial scrutiny of charges, the right to counsel of choice, the right to examine and cross-examine witnesses, and the requirement that proceedings be conducted in accordance with the rules of evidence. These, it was argued, are sufficient to meet the minimum standards of fair trial recognised by this Court and by international human rights instruments including the ICCPR.

v. The appellants rejected the characterisation advanced by the respondents that Military Courts are “executive tribunals” devoid of judicial character. On the contrary, it was submitted that Military Courts under the Army Act are statutorily constituted, operate under defined legal norms, and are subject

to internal appellate review. The argument that these courts are inherently incompatible with Article 10A, they contended, amounts to a priori disqualification without regard to the procedural protections actually provided.

vi. The appellants also highlighted that the military justice system, while distinct from the civilian judiciary, serves a specialised function and is constitutionally recognised. The structure of the Army Act reflects a deliberate legislative choice to establish a legal forum equipped to adjudicate offences that involve sensitive operational and disciplinary matters. The validity of this choice, they argued, cannot be impugned merely on the basis of institutional form or forum.

vii. In conclusion, the appellants submitted that the Army Act does not fall afoul of the guarantees of fair trial and due process. Rather, it provides a constitutionally permissible and procedurally robust mechanism for the adjudication of military-related offences, including those involving civilians under exceptional circumstances. As such, the judgment under appeal, in striking down the impugned provisions without a nuanced consideration of these safeguards, committed a serious error of law.

G. Misapplication of the Doctrine of “Reading Down”

i. The appellants concluded their submissions by challenging what they described as a misapplication of the doctrine of reading down by the impugned judgment, particularly in its construction of Article 8 of the Constitution. It was argued that the judgment engaged in an impermissible interpretation of Article 8(5) to circumvent the clear and categorical exclusion of military laws under Article 8(3)(a). The result, according to the appellants, was not an exercise in constitutional interpretation but a reconfiguration of the constitutional text.

ii. Article 8(3)(a), the appellants reiterated, specifically excludes from the operation of the Chapter on Fundamental Rights any law that relates to members of the Armed Forces and is enacted for the purpose of maintaining discipline and ensuring

the proper discharge of their duties. This provision, in their view, constitutes an express limitation on the enforceability of fundamental rights in respect of such laws. It is not residual or exceptional in nature but operates as a standalone constitutional exception. By contrast, Article 8(5) provides that the rights conferred under the Chapter shall not be suspended except in accordance with the Constitution, particularly under Article 233 during a proclamation of emergency.

iii. The impugned judgment, the appellants contended, conflated these two distinct clauses. It interpreted Article 8(5) as somehow limiting or overriding the scope of Article 8(3)(a), thereby introducing fundamental rights scrutiny into a domain where the Constitution itself envisages immunity. This interpretive move, they argued, was unprecedented and unjustified, especially when Article 8(3)(a) is a self-contained and unqualified exception.

iv. The appellants further submitted that the doctrine of reading down is a technique employed to preserve the validity of legislation by interpreting it in a manner consistent with the Constitution. It is not a tool for altering the plain meaning of constitutional provisions or for introducing limitations that are not textually grounded. In their view, the Court's reliance on this doctrine in the impugned judgment extended beyond its legitimate scope and functioned as an unauthorised rewriting of the Constitution.

v. This, the appellants contended, amounted to judicial overreach and blurred the distinction between constitutional interpretation and constitutional amendment. They cited the decision in *Justice Qazi Faez Isa v. President of Pakistan* (PLD 2021 SC 1), where this Court reaffirmed the limits of judicial function in matters involving constitutional structure and cautioned against interpretive techniques that encroach upon the domain of constitutional amendment.

vi. In conclusion, the appellants submitted that the impugned judgment's treatment of Article 8 not only misapplied established

doctrines of interpretation but also undermined the coherent structure of constitutional safeguards. By invoking Article 8(5) in a manner that diluted the clear effect of Article 8(3)(a), the judgment exceeded its constitutional mandate. This, they argued, rendered the judgment legally unsustainable and warranted its reversal in the present appeals.

Submissions on Behalf of the Respondents

A. Maintainability

- i. The respondents, represented by senior counsel including Khawaja Ahmad Hosain, Salman Akram Raja, Aitzaz Ahsan, Faisal Siddiqui, Abid S. Zuberi, Uzair Karamat Bhandari, and Hamid Khan, submitted that the Constitution Petitions were maintainable under Article 184(3) of the Constitution. It was contended that the petitions raised questions of public importance directly concerning the enforcement of fundamental rights guaranteed under Articles 4, 9, and 10A. These rights were invoked not in abstract, but with reference to the tangible and unprecedented development of civilians being subjected to trial by Military Courts.
- ii. Learned counsel emphasised that the extension of military jurisdiction to civilians in peacetime, without the declaration of an emergency and outside the scope of a constitutional amendment, warranted the exercise of the Supreme Court's original jurisdiction. They submitted that this was not a matter of academic speculation or political commentary, but an immediate legal question with serious implications for the rights and liberties of citizens.
- iii. It was further contended that once a petition discloses a prima facie violation of fundamental rights, and where the issue affects a significant segment of the population or the structural integrity of the Constitution, the threshold for invoking Article 184(3) is met. Reference was made to the precedent in *Benazir Bhutto v. Federation of Pakistan* (PLD 1988 SC 416) and *Justice Qazi Faez Isa v. Federation of Pakistan* (PLD 2020 SC 1), affirming that the

Court's jurisdiction extends to safeguarding both individual rights and broader constitutional order.

- iv. The respondents also highlighted the widespread civil, political, and legal discourse following the events of 9th and 10th May 2023 and the subsequent announcement of military trials. This, they argued, demonstrated the matter's public significance and underscored the need for judicial scrutiny. They further asserted that the petitions involved no ordinary question of legality but a moment of constitutional urgency.
- v. Additionally, the respondents rebutted the claim that the petitioners lacked locus standi, arguing that public interest litigation is admissible where the rights of a vulnerable class of persons, namely civilians at risk of military trial, are concerned. They cited Human Rights Case No. 19 of 1996 (PLD 1996 SC 324) to affirm that the Court may entertain petitions in the public interest even in the absence of a direct personal grievance.
- vi. In conclusion, the respondents submitted that the petitions met all the criteria of justiciability under Article 184(3), involved the enforcement of fundamental rights, and raised constitutional questions of institutional importance. Hence, the invocation of this Court's original jurisdiction was entirely proper.

B. Military Courts' Incompatibility with Fundamental Rights

- i. The respondents next advanced a detailed argument premised upon the incompatibility of military trials of civilians with the guarantees enshrined in Article 10A of the Constitution. It was submitted that the incorporation of Article 10A through the Eighteenth Amendment elevated the right to a fair trial and due process to the status of a fundamental right. This right, they contended, applies uniformly to all judicial or quasi-judicial proceedings affecting life, liberty, or property, and cannot be curtailed except through an express and constitutionally sanctioned limitation. In their view, the structure, procedures, and institutional composition of military trials fail to meet the minimum constitutional threshold required under Article 10A.

- ii. The respondents argued that Military Courts, while statutory in origin, do not possess the attributes of independence and impartiality as contemplated by the Constitution. Composed of serving officers embedded within the chain of military command, such tribunals, it was asserted, lack the requisite security of tenure and structural separation from executive influence. These institutional features, they maintained, impair both the appearance and reality of unbiased adjudication, thereby infringing the core judicial guarantees that Article 10A seeks to protect. In this regard, reliance was placed on *District Bar Association Rawalpindi v. Federation of Pakistan* (PLD 2015 SC 401), wherein this Court acknowledged the exceptional character of military justice and underscored the requirement of strict temporal and contextual justification for its use.
- iii. It was further submitted that the procedures governing military trials—including closed hearings, restricted access to legal counsel, and the absence of publicly available, reasoned judgments—stand in marked departure from the principles of transparency, accountability, and reasoned adjudication. These elements, the respondents argued, are intrinsic to the constitutional conception of a fair trial. Reference was made to comparative jurisprudence, including *A. K. Gopalan v. State of Madras* (AIR 1950 SC 27) from the Supreme Court of India and *R v. Secretary of State for the Home Department, ex parte Anderson* ([2002] UKHL 46) from the House of Lords, to reinforce the proposition that due process requires both procedural fairness and institutional independence.
- iv. The respondents also drew attention to the historical use of military trials within Pakistan, asserting that such mechanisms have, on prior occasions, been associated with periods of constitutional deviation and institutional imbalance. Senior counsel Mr Hamid Khan presented a comprehensive overview of these episodes, highlighting the lack of continuity, transparency, and conformity with civilian oversight. In the present case, it was argued, the absence of any enabling constitutional amendment

or formal proclamation of emergency renders the resort to military jurisdiction over civilians particularly troubling.

- v. In conclusion, the respondents invoked Pakistan's international legal commitments under Article 14 of the International Covenant on Civil and Political Rights (ICCPR), which mandates that criminal proceedings must be conducted before a competent, independent, and impartial tribunal established by law. Although not directly enforceable, these obligations have been recognised by this Court as having persuasive authority in delineating the scope of constitutional rights. The respondents thus contended that the trial of civilians by Military Courts is incompatible with both domestic constitutional guarantees and the international standards to which Pakistan has voluntarily acceded.

C. Structural Incompatibility with Article 175(3) of the Constitution

- i. The respondents proceeded to articulate their submissions regarding the structural implications of trying civilians before Military Courts, arguing that such proceedings offend the constitutional separation of powers as codified under Article 175(3) of the Constitution. It was submitted that Article 175(3) is not merely a declaratory provision but a structural safeguard designed to ensure that judicial power is exercised only by courts established under the Constitution. These courts, it was argued, include the Supreme Court, High Courts, and subordinate courts as created under the legislative competence provided by the Constitution, and do not encompass Military Courts, which are creatures of statute operating outside the judicial framework.
- ii. In this regard, the respondents emphasised that Article 175(3) mandates a complete separation of the judiciary from the executive. Military Courts, composed of serving officers of the Pakistan Armed Forces, function as extensions of the executive branch and do not satisfy the test of judicial independence in either form or substance. Their institutional subordination to the military command structure renders them incapable of being

categorised as courts within the meaning of Article 175, thereby rendering any assumption of judicial power by such fora constitutionally suspect. It was strongly urged that judicial power cannot be divested from constitutional courts and vested in tribunals that are not independent or impartial in the constitutionally required sense.

- iii. The respondents noted that the impugned judgment had only cursorily addressed this argument and failed to engage with the deeper structural incongruity that arises when civilians are subjected to a parallel system of justice not envisioned by the Constitution. Relying on the Indian Supreme Court's decision in *Union of India v. Madras Bar Association* (2010) 11 SCC 1, the respondents contended that judicial power, especially in relation to core constitutional guarantees such as liberty and due process, cannot be entrusted to bodies that lack both judicial training and structural autonomy.
- iv. Furthermore, it was submitted that the use of Military Courts to try civilians dilutes the supremacy of the civilian judiciary and introduces a dangerous precedent whereby extraordinary jurisdiction could be normalised in the absence of a declared emergency or constitutional amendment. The respondents cautioned that such a move undermines the concept of constitutionalism and shifts the balance of power away from judicial oversight toward executive fiat.
- v. The structural objection was also reinforced by reference to *Shahida Zahir Abbasi v. President of Pakistan* (PLD 1996 SC 632), where the Court recognised that while Military Courts may operate for internal military discipline, their jurisdiction over civilians must be narrowly tailored and justifiable only in the most exceptional circumstances. The respondents argued that the present scenario failed to meet any such threshold, especially given that no constitutional amendment akin to the Twenty-First Amendment had been enacted.
- vi. Finally, the respondents posited that Article 175(3), read with Articles 4, 9, and 10A, creates a coherent scheme of judicial

independence and civilian protection. Any attempt to displace this scheme must be scrutinised with exacting rigour. The impugned judgment, in their view, correctly invalidated the relevant provisions of the Army Act for their structural incompatibility with the Constitution's judicial architecture, even if it did not fully articulate the depth of this incompatibility.

D. Inconsistency with Article 8(3)(a) of the Constitution

- i. The respondents next addressed the reliance placed by the appellants on Article 8(3)(a) of the Constitution, firmly contesting its applicability to civilians. It was argued that Article 8(3)(a), by its express language, excludes from the purview of fundamental rights only those laws that relate to "members of the Armed Forces" and are enacted "for the purpose of ensuring the proper discharge of their duties or the maintenance of discipline." The respondents emphasised that this exclusion is narrowly framed and cannot be extended by implication to civilians, who do not fall within the definitional ambit of "members of the Armed Forces."
- ii. They submitted that the Pakistan Army Act, 1952, while primarily a disciplinary code for military personnel, cannot attract the protection of Article 8(3)(a) when applied to persons who are not subject to military command or enlisted within the Armed Forces. The extension of military jurisdiction to civilians, especially in peacetime and without a declared constitutional emergency, was therefore viewed as a constitutionally unauthorised expansion of a limited exception. To extend the exclusion of fundamental rights to such cases, it was argued, would subvert the plain language of the Constitution and erode its structural guarantees.
- iii. Learned counsel Salman Akram Raja and Uzair Karamat Bhandari submitted that a literal and purposive reading of Article 8(3)(a) confines its operation to internal military discipline and service obligations. It was further argued that the contextual

juxtaposition of Article 8(3)(a) with Articles 8(1) and (2) reinforces that only laws genuinely relating to the military's internal order are excluded, and not those that purport to create parallel regimes of criminal prosecution for civilians. In this context, reference was made to the principle of constitutional fidelity and textual restraint, which prohibits reading constitutional exceptions expansively or by implication.

- iv. The respondents criticised the impugned judgment's partial deference to Article 8(3)(a) without expressly acknowledging its non-applicability to civilians. They contended that the correct constitutional approach was to recognise that the impugned provisions of the Army Act, insofar as they apply to civilians, fall outside the protective ambit of Article 8(3)(a) and must therefore conform to the standards of Article 8(1) and (2), read with Articles 9 and 10A. The respondents also drew support from international jurisprudence, including the jurisprudence of the United Nations Human Rights Committee under the ICCPR, which consistently disfavour the trial of civilians by military tribunals and underscore the inapplicability of military exceptions to non-military persons.
- v. Furthermore, it was urged that accepting the appellants' reading of Article 8(3)(a) would create a dangerous constitutional precedent whereby Parliament or the executive could designate any law as "relating to" the Armed Forces and thereby insulate it from judicial review. Such an interpretation, the respondents warned, would undermine the supremacy of the Constitution and the basic structure of rights-based adjudication.
- vi. In sum, the respondents maintained that the exclusion under Article 8(3)(a) cannot be invoked to defend the impugned application of the Army Act to civilians. Such application remains fully justiciable and must satisfy the constitutional guarantees of due process and judicial independence. The impugned judgment, they argued, correctly invalidated the relevant provisions for failing to meet this standard.

E. Respondents' Reservations Concerning the Reasoning in the Impugned Judgment

- i. The respondents, while broadly supporting the outcome reached in the impugned judgment, namely the invalidation of certain provisions of the Pakistan Army Act, 1952 insofar as they applied to the trial of civilians, expressed reservations regarding the reasoning employed by the Bench. Mr. Salman Akram Raja articulated a position that endorsed the conclusion but criticised the reliance placed on Article 8(5) of the Constitution as the principal interpretive anchor. He submitted that the judgment could have rested more firmly on the express constitutional guarantees and structural safeguards contained in Articles 8(1), 8(2), 8(3)(a), and Article 175(3), without resorting to broader interpretive constructs that risk blurring the constitutional scheme.
- ii. He argued that Article 8(5), which prohibits the suspension of fundamental rights except as expressly provided by the Constitution, was not directly relevant to the matter at hand. Its invocation, he contended, was unnecessary and potentially misleading, as the provision addresses temporary derogation of rights during emergency situations declared under Article 233, rather than the permanent exclusion contemplated under Article 8(3)(a). In his view, the critical issue in the present appeals lay not in whether fundamental rights had been suspended but in whether their exclusion could be justified with respect to civilians under the Army Act. That question, he maintained, must be answered by reference to the scope of Article 8(3)(a), the guarantees of due process in Article 10A, and the structural limitation imposed by Article 175(3).
- iii. Other counsel for the respondents echoed these concerns, urging that while the judgment's result was normatively and constitutionally sound, the reasoning employed risked creating interpretive ambiguity. They submitted that the Court must distinguish between temporary derogation of rights permissible in emergency contexts and unconstitutional extension of

executive or military jurisdiction over civilians in peacetime. The judgment, in conflating these two concepts, undermined the clarity of constitutional protections and risked unintended doctrinal consequences in future litigation.

- iv. Accordingly, the respondents welcomed the relief granted in the impugned order but invited this Court, in the present appeals, to rest its reasoning on firmer constitutional grounds. They emphasised the importance of doctrinal coherence, especially in matters involving the trial of civilians, the separation of powers, and the enforcement of fundamental rights. A reasoning structure grounded in the constitutional text and historical understanding of judicial independence, it was submitted, would not only affirm the correctness of the outcome but also strengthen the legitimacy of the Court's interpretive role.

F. Respondents' Reliance on Comparative and International Human Rights Norms

- i. The respondents concluded their submissions by placing strong reliance on comparative constitutional jurisprudence and international human rights law, particularly the jurisprudence developed under the International Covenant on Civil and Political Rights (ICCPR), to which Pakistan is a State Party. It was submitted that the trial of civilians by Military Courts is not only inconsistent with the domestic constitutional guarantees of due process and judicial independence but also violates Pakistan's binding international obligations under Articles 9 and 14 of the ICCPR.
- ii. Learned counsel Faisal Siddiqui and Hamid Khan referred to multiple decisions of the United Nations Human Rights Committee, which has consistently held that military tribunals lack the institutional independence and impartiality required to try civilians, except in narrowly circumscribed exceptional circumstances. They pointed to General Comment No. 32 of the Human Rights Committee, which interprets Article 14 of the ICCPR to require that all persons be tried by competent, independent, and impartial tribunals established by law, and

that military courts should not have jurisdiction over civilians unless there are compelling justifications, and even then, only with full adherence to fair trial guarantees.

- iii. The respondents also drew attention to comparative decisions from the Supreme Courts of India, Canada, and the United Kingdom. In particular, they referenced *A.K. Gopalan v. State of Madras* and *Nikhil Soni v. Union of India* from India, which underscore the primacy of constitutional rights in adjudicating issues of liberty and due process. From the Canadian context, they relied on *R. v. G  n  reux* [1992] 1 SCR 259, where the Supreme Court of Canada recognised that military tribunals must conform to constitutional standards when trying civilians. Similarly, they cited *R. (Anderson) v. Secretary of State for the Home Department* [2003] UKHL 46, which reaffirmed the right of access to independent and impartial courts under Article 6 of the European Convention on Human Rights.
- iv. These submissions were made to establish that the constitutional architecture of Pakistan does not exist in isolation but must be interpreted in harmony with evolving global standards, especially where such standards reaffirm the dignity, liberty, and fair trial rights of all individuals, including civilians. It was contended that Pakistan, having ratified the ICCPR without reservations to the relevant provisions, has voluntarily assumed international obligations that are not only binding in international law but are also persuasive in constitutional interpretation.

10. Accordingly, the respondents submitted that the trial of civilians by Military Courts constitutes a deviation from both domestic and international norms. The impugned judgment, they argued, correctly realigned Pakistani jurisprudence with the global consensus that such trials are incompatible with the principles of the rule of law, judicial independence, and civilian supremacy. They urged the Court to affirm this trajectory and to adopt a rights-based interpretation consistent with Pakistan's constitutional and international commitments.

11. In light of the submissions advanced by learned counsel for the parties, the material placed on record, and the constitutional gravity of the issues involved, the following questions arise for determination:

1. Whether the Constitution Petitions filed under Article 184(3) of the Constitution of the Islamic Republic of Pakistan, 1973 were maintainable, particularly in view of the preliminary objections raised by the Federation, which questioned the absence of public importance involving the enforcement of Fundamental Rights, and in light of the scope and limitations of the jurisdiction conferred under the said Article.
2. Whether clause (d) of sub-section (1) of section 2, including sub-clauses (i) and (ii), and sub-section (4) of section 59 of the PA Act, 1952 are repugnant to the Constitution and liable to be struck down, having regard to the rights guaranteed under Articles 4, 9, and 10A, and the institutional scheme delineated under Article 175.
3. Whether Article 8(3)(a) of the Constitution excludes the application of Fundamental Rights to legislative instruments and actions taken under the Pakistan Army Act, and whether such exclusion, if established, precludes constitutional scrutiny of the trial of civilians by Military Courts.
4. Whether the conduct of trials of civilians under the Army Act satisfies the standards of fairness, impartiality, and procedural due process envisaged under Article 10A of the Constitution, and whether the mechanisms under military jurisdiction are constitutionally sufficient.
5. Whether the exercise of adjudicatory powers by Military Courts in respect of civilians violates the principle of separation of powers and the institutional framework of the judiciary as envisaged under Article 175(3) of the Constitution, and whether such exercise amounts to a usurpation of judicial power.
6. Whether the impugned judgment, by declaring certain provisions of the Army Act to be ultra vires, contradicted the binding ratio decidendi of *Brig. (Retd.) F.B. Ali v. The State* (PLD 1975 SC 506),

and whether it was permissible for a Bench of coordinate strength to depart from such precedent without referring the matter to a larger Bench.

7. Whether the procedural safeguards available under the Army Act, including the mechanisms of trial and appellate review under sections 133 and 133-B, meet the constitutional threshold required for a fair trial and due process, or whether a statutory right of appeal to the High Courts is constitutionally necessary.
 8. Whether the interpretation and application of constitutional provisions in the present context should be informed by comparative constitutional jurisprudence from other common law jurisdictions and Pakistan's international obligations, including those under the International Covenant on Civil and Political Rights, particularly with regard to the trial of civilians by military tribunals.
12. The first and foundational issue requiring adjudication pertains to the maintainability of the Constitution Petitions filed under Article 184(3) of the Constitution of the Islamic Republic of Pakistan, 1973. The appellants assailed the jurisdiction assumed by the original Bench, contending that the twin threshold requirements laid down under Article 184(3) were not satisfied. Specifically, it was argued that the petitions neither disclosed a question of public importance nor demonstrated a violation of enforceable fundamental rights. The respondents, on the other hand, urged that the matter involved profound constitutional questions directly implicating fundamental rights and affecting the structural integrity of the constitutional order, thereby justifying recourse to this Court's original jurisdiction.
13. Article 184(3) is the sole constitutional provision that vests the Supreme Court with original jurisdiction in cases involving the enforcement of fundamental rights, provided the matter also involves a question of public importance. The jurisdiction so conferred is exceptional in nature and is not to be invoked casually. Rather, the Court is required to determine with judicial exactitude whether both limbs of the test, that of public importance and enforcement of

fundamental rights, are independently and cumulatively satisfied. This conjunctive requirement has been consistently recognised in the jurisprudence of this Court, including *Miss Benazir Bhutto v. Federation of Pakistan* (**PLD 1988 SC 416**) and further reaffirmed in *Dr. Muhammad Tahir-ul-Qadri v. Federation of Pakistan* (**PLD 2013 SC 413**).

14. The appellants contended that the petitions lacked concrete adversity and failed to disclose a direct infringement of the petitioners' own rights. Rather, the challenge was presented in abstract terms and was directed at the mere possibility of civilians being tried under the Pakistan Army Act, 1952, without identifying specific aggrieved individuals. This, they submitted, rendered the petitions speculative and outside the scope of Article 184(3), which does not permit the assumption of jurisdiction on hypothetical or anticipatory grievances. Reliance was placed on the principle that a petitioner must establish not only a breach of rights but also a personal and direct interest in the matter, and that judicial review under Article 184(3) is not a substitute for the Court's advisory jurisdiction.

15. It is undeniable that the impugned judgment did not explicitly address this threshold objection in a distinct and reasoned manner. The requirement to determine jurisdiction as a preliminary issue, especially where it is directly challenged, is an essential component of judicial discipline. As held in *Ch. Muhammad Siddique v. Government of Pakistan* (**PLD 2005 SC 1**), jurisdiction must be affirmatively established on the record.

16. Notwithstanding this analytical omission, the cumulative tenor and substance of the impugned judgment indicate that the Court did in fact proceed on the assumption that both limbs of Article 184(3) were satisfied. The judgment engaged extensively with the constitutional validity of military trials of civilians, evaluated the compatibility of the impugned provisions with Articles 9 and 10A, and examined the implications of such trials for the judicial architecture envisaged under Article 175(3). These are not academic or incidental concerns but go to

the heart of constitutional governance, the rule of law, and the protection of individual liberties against exceptional jurisdiction.

17. Furthermore, the matter plainly raises a question of public importance. The term "public" connotes something pertaining to or belonging to the community at large, as opposed to specific individuals, as held in *Manzoor Elahi v. Federation of Pakistan* (**PLD 1975 SC 66**). Whether a matter involves "public importance" is to be determined on a case-by-case basis, having regard to the facts and circumstances, as laid down in *Dr. Muhammad Tahir-ul-Qadri v. Federation of Pakistan* (**PLD 2013 SC 413**). Such importance is established when the case concerns the rights and liberties of the people generally and not just of a specific group, as clarified in *I.A. Sharwani v. Government of Pakistan* (**1991 SCMR 1041**). The term itself is not amenable to precise definition and must be delineated through judicial inclusion or exclusion, as held in *Watan Party v. Federation of Pakistan* (**PLD 2012 SC 292**). The threshold requires that the matter affect the legal rights or liabilities of the community at large and not merely of a specific individual (**PLD 2007 SC 642; PLD 2004 SC 583; 1998 SCMR 793**).

18. In the present matter, the trial of civilians by Military Courts following unprecedented events, prima facie, raises issues that affect a class of persons and the broader distribution of judicial power. These considerations satisfy the requirement of public importance, as the case has generated legal, political, and public concern. The petition also involves an alleged invasion of fundamental rights, notably the rights to life, liberty, and fair trial, enshrined in Articles 4, 9, and 10A of the Constitution. Even in the absence of named individuals, the impugned legal framework was directly applied to a vulnerable class, justifying public interest litigation, as recognised in *Mian Muhammad Nawaz Sharif v. President of Pakistan* (**PLD 1993 SC 473**) but the court ignored the fact that any law relating to members of the Armed Forces, is an exception from enforcement of fundamental rights in the light of clause (a) of sub-article (3) of Article 8 of the Constitution.

19. The exercise of jurisdiction under Article 184(3) is contingent upon both the conditions of public importance and enforcement of fundamental rights being met concurrently, as reaffirmed in *Abdul Wahab v. HBL* (**2013 SCMR 1383**). The petitions challenged the application of provisions of the Army Act alleged to contravene constitutional rights. These are matters that implicate not only individual liberties but also the legitimacy of judicial power and the compatibility of military jurisdiction with constitutional norms.

20. However, although the petitions did involve questions of public importance and the violation of fundamental rights, the original Bench failed to satisfy the twin requirements for invoking this Court's extraordinary original jurisdiction: the existence of a question of public importance and the alleged violation of a fundamental right. This jurisdiction is not to be invoked casually; rather, it is a tool of last resort for matters of profound constitutional significance. The impugned judgment is fatally flawed for its failure to explicitly and convincingly address this preliminary jurisdictional objection. The Bench's decision to proceed without a clear, reasoned finding on maintainability was not a mere analytical omission but a grave dereliction of judicial duty. Article 184(3) is a powerful constitutional provision, and its application cannot be presumed or taken for granted. This Court finds that the impugned judgment's silent assumption of jurisdiction was a dangerous precedent that must be corrected.

21. The appellants further criticised the impugned judgment for its reliance on Article 8(5) of the Constitution as a counterbalance to Article 8(3)(a). Such reliance amounted to a grave doctrinal misstep, one that conflated distinct constitutional provisions with disparate scopes and purposes. Article 8(3)(a) provides a clear and express exemption from the operation of fundamental rights in respect of laws relating to the Armed Forces, enacted for the purpose of maintaining discipline and ensuring the proper discharge of duties. By contrast, Article 8(5) concerns the suspension of fundamental rights during emergencies declared under Article 233 and prescribes that rights shall not be suspended except in accordance with the Constitution.

22. The reasoning adopted in the impugned judgment, particularly in paragraphs 56 and 58, reveals a fundamental inconsistency in its application of constitutional provisions concerning the immunity granted to laws under Article 8(3)(a) of the Constitution. The judgment initially accepts that the amendments introduced via Ordinances III and IV of 1967, once incorporated into the Pakistan Army Act, 1952, became “a provision of that law” and thus fell squarely within the protective ambit of Article 8(3)(a). As stated by Mr. Justice Munib Akhtar in paragraph 56, “once the said provisions passed into the Army Act and were incorporated therein, they would become a ‘provision’ of that law,” and consequently, “no law within their contemplation nor any provision thereof can or could be challenged as being inconsistent with, or repugnant to, any of the fundamental rights.” This recognition of a categorical constitutional bar under clause (3)(a) aligns with a settled interpretative approach that laws specifically enumerated therein are wholly insulated from challenge on the basis of inconsistency with fundamental rights.

23. However, in paragraph 58, a contradictory interpretation is offered wherein clause (5) of Article 8 is invoked to reintroduce judicial scrutiny over the very same provisions. The statement that “any and every law claiming to be within the contemplation of the said provision must pass through the sieve of clause (5)” appears to undermine the express constitutional command that laws covered under clause (3)(a) are exempt from the entire operation of Article 8, including its sub-clauses. This approach creates an internal incoherence, as it attempts to bifurcate the immunity granted by clause (3)(a) and re-subject the protected law to scrutiny through clause (5). The interpretation fails to reconcile the temporal and legal reality that clause (5) was introduced subsequent to the enactment of the impugned provisions, which were already absorbed into a statute covered under clause (3)(a). It also neglects the express wording of the Constitution that makes the entirety of Article 8 inapplicable to laws within the purview of clause (3)(a), thereby excluding clause (5) itself. Thus, while purporting to preserve fundamental rights, the judgment inadvertently subverts a

constitutionally ordained exemption, and in doing so, renders its own conclusion internally self-defeating. Nonetheless, the conclusion that the impugned judgment is per incuriam and cannot be sustained in law, remains valid.

24. Moreover, the interpretive technique of reading down, as employed in the impugned judgment, is inapposite. The doctrine of reading down is a tool of judicial restraint, designed to preserve the constitutionality of statutes by construing them narrowly where ambiguity arises. It cannot be deployed to insert qualifications or restrictions into clear constitutional provisions. Here, the judgment purported to use reading down to override the unambiguous text of Article 8(3)(a), effectively substituting judicial preference for constitutional command.

25. This approach crosses the threshold of legitimate interpretation and enters the domain of constitutional amendment. The judicial function is to interpret, not to legislate. The Court reiterates the principle that constitutional adjudication must be confined within the contours of the text. As emphasised in *Justice Qazi Faez Isa v. President of Pakistan (PLD 2021 SC 1)*, the judicial role is bounded by the structure of the Constitution, and interpretive innovation must not transgress into amendment.

26. Article 8(3)(a) is a self-contained constitutional provision. It categorically exempts laws enacted for the Armed Forces, for purposes of discipline and discharge of duties, from the operation of fundamental rights. This is a deliberate legislative choice by the framers. The introduction of Article 8(5) as a qualifying provision in this context is doctrinally and textually unsound. Article 8(5) deals with the suspension of rights under emergency powers and does not, and cannot, override the permanent structural exclusion under Article 8(3)(a).

27. The Court further notes that even the respondents, while broadly supporting the outcome reached in the impugned judgment, expressed reservations regarding the reasoning employed. Counsels for

respondents questioned the reliance on Article 8(5) as the primary interpretive anchor. They argued that the Court could have arrived at the same conclusion through a more textually grounded route, namely by engaging Articles 8(1), 8(2), 8(3)(a), 10A, and 175(3), which together provide a robust constitutional framework for assessing the compatibility of military trials of civilians with fundamental guarantees.

28. Counsel submitted that Article 8(5), which prohibits the suspension of fundamental rights except as expressly provided by the Constitution, is confined to emergency situations and is not germane to the analysis of permanent constitutional exclusions. The issue in the present case is not about suspension but about whether the exclusion of rights can be constitutionally extended to civilians under the Pakistan Army Act. That inquiry must be grounded in the scope of Article 8(3)(a) and the overarching principles of due process and separation of powers.

29. Accordingly, the Court holds that the impugned judgment erred in its reliance on Article 8(5) to temper or override the express language of Article 8(3)(a). This reliance resulted in a misapplication of interpretive doctrines and destabilised the structural coherence of the Constitution. The judgment blurred the lines between adjudication and amendment, and for these reasons, its reasoning cannot be sustained in law.

30. The judgment failed to engage with the doctrine of constitutional avoidance. This principle, affirmed in *Benazir Bhutto v. Federation of Pakistan* (**PLD 1988 SC 416**), mandates that where a statutory provision admits of two plausible interpretations, courts ought to adopt the construction that upholds the constitutionality of the law. This obligation is reinforced in *Elahi Cotton Mills Ltd. v. Federation of Pakistan* (**PLD 1997 SC 582**), wherein it was held that “the law should be saved rather than be destroyed,” and courts must “lean in favour of upholding the constitutionality of legislation,” owing to the presumption in favour of constitutionality unless the statute is ex facie violative of constitutional provisions.

The principle of interpretive restraint also warranted application. As elaborated in *Messrs Sui Southern Gas Company Ltd. v. Federation of Pakistan* (**2018 SCMR 802**), where two interpretations are possible, the one that sustains the validity of the enactment must be preferred. The Court stressed that judicial invalidation should be a measure of last resort and must be exercised with “extreme reluctance” to prevent disproportionate judicial interference in legislative functions. Moreover, the judgment in *Hadayat Ullah v. Federation of Pakistan* (**2022 SCMR 1691**) affirms that interpretive techniques such as “reading down” and “severance” should be employed to salvage constitutionally valid portions of a statute, provided such construction is consistent with legislative intent and the statute’s operational coherence.

31. In the instant case, these doctrines were not only relevant but necessary. The Court had the viable option of preserving the impugned provisions by limiting their application. Such an approach would have aligned with the guidance in *Shahid Pervaiz v Ejaz Ahmad* (**2017 SCMR 206**), which acknowledged that while courts strive to preserve legislation, severance may be invoked to excise unconstitutional elements without dismantling the statutory framework. As reiterated in *Dr. Mobashir Hassan v. Federation of Pakistan* (**PLD 2010 SC 265**), judicial review must operate within a principled framework, ensuring that only the irredeemably unconstitutional parts are struck down, while the rest are sustained if independently operable.

Accordingly, it is held that the learned Bench erred in disregarding the doctrines of constitutional avoidance and interpretive restraint. Its declaration striking down the provisions in their entirety lacks proportionality and doctrinal support. The impugned judgment is therefore liable to be set aside to exceed the minimum corrective required under the Constitution.

32. The appellants’ next principal submission was rooted in the doctrine of precedent and the institutional norms governing the adjudicatory function of this Court. Central to their argument was the decision in *Brigadier (Retired) F.B. Ali v. The State* (**PLD 1975 SC 506**),

in which a five-member Bench of the Supreme Court upheld the constitutional validity of subjecting certain categories of civilians to military jurisdiction under the Pakistan Army Act, 1952. That judgment engaged in a detailed constitutional analysis of the provisions now impugned—clause (d) of section 2(1) and sub-section (4) of section 59—and held them to be consistent with the Constitution where the civilian conduct in question bore a substantial and rational nexus to the military establishment or objectives of national defence.

33. The Court in *F.B. Ali Case* did not regard military jurisdiction over civilians as inherently unconstitutional. Rather, it endorsed a carefully delineated exception to the ordinary judicial process, contingent upon the proximity of the offence to the military context and the necessity for discipline in such scenarios. The reasoning in *F.B. Ali Case* was not abstract or policy-driven but grounded in the constitutional scheme itself. It recognised the principle of institutional necessity while preserving core constitutional safeguards.

34. The impugned interpretation fails to withstand scrutiny when tested against the consistent judicial precedent affirming that civilians may be subjected to trial by military courts only where a direct and substantial nexus exists between the alleged offence and the Armed Forces or the defence of Pakistan. This position was first articulated in *Brig (Retd.) F.B. Ali v. The State (PLD 1975 SC 506)*, where Hamoodur Rahman, (the then CJ) held that “even a civilian who is made subject to the Army Act can be tried by the Military Courts under the said Act, provided that the offence of which such person is charged with has nexus with the Armed Forces or Defence of Pakistan.” The requirement of a close and direct nexus was reiterated with approval in *Sheikh Liaquat Hussain v. Federation of Pakistan (PLD 1999 SC 504)*, where the Court stated at page 608 that “the nexus with the defence of Pakistan was not only close but also direct.” This principle has since formed a consistent thread in subsequent jurisprudence, including the nine-member Bench decision in *District Bar Association, Rawalpindi v. Federation of Pakistan (PLD 2015 SC 401)*, where it was reaffirmed at pages 733–734, paragraph 160, that the Army Act is

“clearly and unequivocally... immune from the rigors of Article 8,” but this immunity does not extend to indiscriminate application of military jurisdiction to civilians absent the requisite nexus.

35. While the judgment under consideration invokes Article 8(3)(a) of the Constitution to assert that once a provision is incorporated into the Army Act it is shielded from scrutiny under fundamental rights, this protection does not abrogate the longstanding doctrinal requirement that a civilian may only be triable under military law where a defensible connection exists between the alleged offence and the military establishment. As Mr. Justice Munib Akhtar observed in paragraph 56 of the impugned judgment, “once the said provisions passed into the Army Act and were incorporated therein, they would become a ‘provision’ of that law. And as Article 8(3)(a) explicitly states... no law within their contemplation nor any provision thereof can or could be challenged as being inconsistent with, or repugnant to, any of the fundamental rights.” While this rightly affirms the constitutional shelter provided to such laws, it overlooks that judicially recognised conditions for their application to civilians remain relevant. This limitation is not only consistent with Article 8(3)(a), but indeed necessary to prevent an otherwise unconstitutional extension of military jurisdiction.

36. Furthermore, jurisprudence across multiple decisions has recognised the protective ambit of Article 8(3)(a), without conflating that protection with a blanket authorisation for military courts to try civilians. In the impugned judgment reported as *PLD 2024 SC 337*, at page 377, paragraph 43, the Court reaffirmed that “the Army Act meets both these conditions and is therefore a law within the contemplation of Article 8(3)(a)... to allow a law of the nature of the Army Act to exist in derogation of fundamental rights.” Likewise, in *PLD 1996 SC 632* at page 650, the Court declared that the “Army Act, 1952 is one of those pieces of legislation which is protected under Article 8(3)(a) of the Constitution.” However, in none of these decisions has the Court departed from the foundational requirement first laid down in *F.B. Ali* that such jurisdiction over civilians must be justified through a clear

and demonstrable nexus. It follows that any interpretation purporting to negate this settled doctrine or to treat Article 8(3)(a) as an unfettered authorisation for military trials of civilians is legally untenable. Thus, the impugned interpretation, which disregards the nexus requirement, suffers from a fundamental defect and cannot be sustained.

37. The judgment under appeal, however, failed to recognise the authoritative weight of F.B. Ali. It proceeded to strike down the same provisions previously upheld without offering any compelling doctrinal refutation or factual distinction. Most significantly, it did not declare F.B. Ali per incuriam, nor did it refer the matter to a larger Bench for reconsideration. This approach stands in violation of the settled jurisprudential principle that a Bench of coordinate strength is bound by earlier precedent unless and until the matter is escalated to a larger Bench for authoritative determination.

38. The principle of coordinate Bench discipline has been unequivocally affirmed by this Court, which has consistently held that a Bench cannot disregard or depart from the decision of another Bench of equal strength, save by referring the matter to a Bench of greater numerical composition. This rule underpins the doctrine of *stare decisis*, which is essential to ensuring legal certainty and institutional coherence. This position has been reiterated in *Qaiser v. State* (**2022 SCMR 1641**), *Samrana Nawaz v. M.C.B.* (**PLD 2021 SC 581**), *Ardeshir Cowasjee v. Karachi Building Control Authority* (**1999 SCMR 2883**), and *Multiline Associates v. Ardeshir Cowasjee* (**PLD 1995 SC 423**).

39. The failure to refer the matter to a larger Bench under Article 189 read with the Supreme Court (Practice and Procedure) Act, 2023, constitutes not merely a procedural lapse but a departure from constitutional propriety. Judicial comity, consistency, and the integrity of constitutional jurisprudence demand strict adherence to precedent or the proper invocation of mechanisms for reconsideration.

40. It is further observed that the impugned judgment, in departing from F.B. Ali without procedural compliance, engaged in what may be termed an implicit overruling. This is impermissible. A coordinate

Bench cannot, through inference or implication, override an existing precedent without expressly stating its reasons and following the institutional protocols established by this Court.

Moreover, the reasoning in *F.B. Ali*, far from being isolated or outdated, has remained an integral part of this Court's understanding of Article 8 and Article 10A in the context of military jurisdiction. It has served as a jurisprudential anchor for balancing civil liberties with national security. Any departure from such reasoning must be supported by compelling constitutional analysis and undertaken by a Bench properly constituted for that purpose.

Accordingly, this Court holds that the impugned judgment erred in law by departing from the binding authority of *F.B. Ali v. The State (PLD 1975 SC 506)* without a formal reference to a larger Bench. This deviation undermines the legitimacy of the judgment and introduces unwarranted instability into the constitutional jurisprudence of military justice. On this ground alone, the findings of the impugned judgment are liable to be set aside. This question is therefore answered in favour of the appellants.

41. The procedural framework under the Army Act fulfils minimum requirements of fair trial. Provisions such as sections 133 and 133-B ensure post-conviction review and appellate oversight. Trials are conducted under prescribed legal standards, affording accused persons adequate procedural protections as has previously been affirmed in *Shahida Zahir Abbasi v. President of Pakistan (PLD 1996 SC 632)*.

The objection under Article 175(3), that Military Courts violate the principle of separation of powers, is similarly misconceived. Article 175(3) prevents judicial capture by the executive but does not bar Parliament from creating parallel adjudicatory forums for distinct legal regimes. The military justice system is one such forum, authorised by statute, functioning under its own hierarchy and process, and limited to a specific operational context.

42. The constitutional carve-out under Article 8(3)(a) is decisive. It states that Fundamental Rights do not apply to laws relating to the Armed Forces enacted for the purpose of discipline and proper discharge of duty. This clause constitutes a direct constitutional exemption and must be interpreted according to its plain and categorical terms. The Army Act, which is designed precisely to uphold military discipline, falls squarely within this exemption. In *Col. (Retd.) Muhammad Akram v. Federation of Pakistan* (**PLD 2009 FSC 36**), the Federal Shariat Court acknowledged this immunity as consistent with Article 8(3)(a). The impugned judgment's reliance on Article 8(5) to circumvent this exemption is doctrinally unsound. Article 8(5) addresses temporary suspension of rights in emergency situations and cannot override the specific and permanent exemption under clause (3)(a).

43. Furthermore, as held in *Justice Qazi Faez Isa v. President of Pakistan* (**PLD 2021 SC 1**), the judiciary must exercise interpretive restraint and avoid constructions that rewrite the Constitution. Elevating clause (5) over clause (3)(a) disrupts the internal coherence of Article 8 and undermines the textual hierarchy embedded in constitutional design.

44. Importantly, the scope of Article 8(3)(a) is not boundless. If legislation ostensibly relating to military discipline is applied arbitrarily to civilians without proximate military relevance, it may fall outside the protective sphere of clause (3)(a). However, the challenged provisions, section 2(1)(d) and section 59(4), apply only in cases of direct hostility towards military objectives. Their use in response to the events of 9 and 10 May 2023, involving deliberate attacks on military installations, is a context that constitutionally justifies their application.

This question concerns whether the conduct of trials of civilians under the Pakistan Army Act, 1952 meets the constitutional threshold of fairness, impartiality, and procedural due process envisaged under Article 10A of the Constitution, and whether military tribunals are a constitutionally sufficient forum for adjudicating such matters.

Article 10A was introduced through the Eighteenth Amendment and reads: “For the determination of his civil rights and obligations or in any criminal charge against him, a person shall be entitled to a fair trial and due process.” This provision has elevated fair trial guarantees from general principles to enforceable Fundamental Rights, thereby transforming the landscape of constitutional adjudication.

The impugned judgment declared that the trial of civilians by Military Courts fell afoul of Article 10A, primarily on the grounds of institutional and procedural deficiencies. It was argued that Military Courts, composed of serving officers, lack the independence and impartiality necessary to meet the constitutional standard of a fair trial. However, this conclusion overlooks both the structural intent of the Army Act as well as the procedural safeguards built into its operation.

45. First, the Army Act, as a legislative framework, provides for an internal procedural structure that includes detailed rules of evidence, rights of the accused to be informed of charges, the right to counsel, cross-examination of witnesses, and appellate review through section 133-B. These safeguards are embedded in the military justice system, as was affirmed by this Court in *Shahida Zahir Abbasi v. President of Pakistan* (PLD 1996 SC 632), where it was held that:-

[---] the rules of procedure applicable for trial of a person in a criminal case before a Military Court do not violate any accepted judicial principle governing trial of an accused person. With the assistance of learned Attorney-General and the learned counsel for the petitioners we have gone through various provisions of the Act governing the procedure of trial before a Military Court and after going through the same, I am of the view that the procedure prescribed for trial before Military Courts is in no way contrary to the concept of a fair trial in a criminal case, I may also add here, that unlike the previous position when no appeal was provided against the conviction and sentence awarded by a Military Court, the Act now provides an appeal against the conviction and sentence awarded by a Military Court before an appellate forum.

Moreover, under international law, including Article 14 of the International Covenant on Civil and Political Rights (ICCPR), military tribunals are not per se unconstitutional. What is required is that such

tribunals afford basic guarantees of fairness, including an independent appellate process. The Army Act, through its internal review structure, satisfies these minimum standards.

46. While the transparency and institutional independence of Military Courts may not be equivalent to that of civilian courts, the constitutional scheme allows for differentiated forums to address distinct categories of offences. Provided that such forums are circumscribed, procedurally fair, and subject to review, their existence does not contravene basic standard of fair trial. To insist otherwise would be to equate the form of adjudication with its substance, thereby disregarding the nuanced requirements of constitutional fairness.

47. Lastly, the suggestion that the absence of appeal to High Courts renders the military justice system unconstitutional overlooks the legislative discretion inherent in designing specialised judicial regimes. Fair trial does not mandate that every forum must be identical in structure to regular courts. What it demands is that the forum be fair, impartial, and governed by transparent rules. The Army Act, as currently framed and applied in the present context, meets this constitutional requirement.

48. In view of the foregoing, it is held that the conduct of trials under the Army Act, where exercised within the statutory limits and supported by procedural safeguards, does not violate fair trial standards. The impugned judgment erred in holding otherwise.

49. The question whether the adjudication by Military Courts in relation to civilians infringes the constitutional principle of separation of powers as established in Article 175(3) of the Constitution, and whether such adjudication amounts to an unconstitutional usurpation of judicial authority.

50. Article 175(3) mandates that the judiciary shall be progressively separated from the executive within fourteen years from the commencing day. The principle embodied therein reflects a fundamental feature of constitutionalism, requiring that the exercise of

judicial power be insulated from executive control. It affirms the institutional distinction between adjudicatory functions performed by courts and administrative powers exercised by the executive.

The impugned judgment held that Military Courts, being composed of serving military officers, are functionally a part of the executive and therefore incompatible with Article 175. This interpretation relies on a formalist reading of the Constitution and overlooks the complex legal and institutional matrix that underpins military justice.

51. First, the authority of Military Courts arises not under Article 175 but through a distinct constitutional and statutory pathway. Article 8(3)(a) exempts laws relating to the Armed Forces from the purview of fundamental rights, explicitly recognising a parallel regime for military discipline. Article 245 further empowers the Armed Forces to act in defence of Pakistan and in aid of civil authority, indicating that the Constitution contemplates a domain of operations and discipline governed by military command and distinct legal processes.

52. Second, the Constitution does not prohibit the establishment of specialised forums outside the scope of Article 175, provided they do not supplant the ordinary courts or violate constitutional guarantees of fairness. In *Shahida Zahir Abbasi v. President of Pakistan* (**PLD 1996 SC 632**), this Court upheld the constitutional validity of Military Courts on the ground that their jurisdiction, though exceptional, was lawful where constrained by statutory conditions and subject to legal safeguards.

53. Third, a proper understanding of Article 175(3) requires recognising the functional role of military justice. Military Courts address offences that bear a direct relationship to national defence and military operations. They do not exist to replace civilian courts, but to operate within a narrowly defined legal space to serve purposes that civilian judicial forums are not equipped to address. Their jurisdiction, therefore, must be understood in the context of operational exigencies, rather than in abstraction from them.

54. Fourth, it is constitutionally permissible for the legislature to create special tribunals and fora for adjudicating matters of a particular nature. This is exemplified in Article 212, which permits the establishment of Administrative Tribunals for service matters. The Constitution and jurisprudence have recognised the legitimacy of such quasi-judicial bodies where they provide effective, fair, and lawful adjudication. The test is not institutional origin but functional legitimacy and procedural integrity.

55. Fifth, the distinction between an impermissible usurpation of judicial power and a constitutionally sanctioned delegation must be observed. Military justice in Pakistan has developed as a structured legal system with defined jurisdiction, procedural safeguards, and limited scope. It is not a discretionary or ad hoc mechanism but a codified and historically entrenched system. Where its jurisdiction over civilians is exercised with fidelity to statutory purpose and military necessity, it does not violate Article 175(3).

56. Mr. Bhandari has placed reliance upon the judgment of the Supreme Court in *Federation of Pakistan v. Khurshid Ahmed* (**1999 SCMR 664**), specifically pages 686 and 687, in support of his contention that civilian employees attached to the Army and to forces deemed to be in “active service” fall within the ambit of section 2(1)(c) of the Pakistan Army Act, 1952 (the Act), thereby subjecting them to trial by court martial. He further argued that this judgment affirms the position taken in two Indian Supreme Court cases, namely *O.K.A. Nair v. Union of India* (**AIR 1976 SC 1179**) and *Gopal Upadhyaya v. Union of India* (**AIR 1987 SC 413**), which hold that such civilians are “integral to the Armed Forces” and “answer the description of the ‘members of the Armed Forces’ within the contemplation of Article 33” of the Indian Constitution. However, this submission is not borne out from a careful reading of *Khurshid Ahmed*. The precise question before the Supreme Court of Pakistan is recorded in paragraph 12 of the judgment as follows: “The learned counsel for the parties have disagreed on the interpretation of section 2(1)(c) of the Act. According to learned counsel for the respondent, the words ‘on active service, in camp, on the march

or at any frontier post' used in section 2(1)(c) *ibid*, qualify or refer to persons not otherwise subject to the Act. The learned D A G on the other hand, contends that these expressions refer to any portion of the Pakistan Army and not persons not otherwise subject to the Act" (*Federation of Pakistan v. Khurshid Ahmed*, 1999 SCMR 664, p. 683). It is thus evident that the core issue concerned the interpretive scope of section 2(1)(c), rather than the constitutional status of civilians under the Act.

57. This interpretative conclusion is fully clarified in paragraph 14 of the same judgment. The Court held: "On a careful consideration of provisions of section 2(1)(c) of the Act, we are of the considered view that the words 'on active service, in camp, on the march or at any frontier post' in clause (c) to subsection (1) of section 2 (*ibid*), refer to any portion of the Pakistan Army. In our view, section 2(1)(c) is to be read as 'a person not otherwise subject to this Act, are employed by, or are in the service of or are followers of or accompanying any portion of the Pakistan Army, on active service, in camp, on march or on a frontier post specified by the Federal Government by notification in this behalf'. It is only by reading of the provision in the manner indicated by us that the provision will give meaning which will harmonise with the object of the Act otherwise it would lead to absurdity" (*Khurshid Ahmed*, 1999 SCMR 664, pp. 685 to 686). The two Indian judgments were cited only in support of the textual interpretation offered by the Deputy Attorney General and not for the proposition that civilians qualify as "members of the Armed Forces" for constitutional purposes. This is evident from the Supreme Court's citation of the holding in *O.K.A. Nair*, where the Indian Court observed that "although they are non-combatant and are in some matters governed by the Civil Service Regulations, yet they are integral to the Armed Forces. They answer the description of the 'members of the Armed Forces' within the contemplation of Article 33" (AIR 1976 SC 1179, para 12). Similarly, in *Gopal Upadhyaya*, the Indian Supreme Court reiterated that "the members of the Unions represented by the appellants fall within this category. It is their duty to follow or accompany the Armed personnel on active service, or in

camp or on the march. Although they are non-combatants and are in some matters governed by the Civil Service Regulations, yet they are integral to the Armed Forces. They answer the description of the 'members of the Armed Forces' within the contemplation of Article 33" (AIR 1987 SC 413, para 2). These observations were not adopted by the Supreme Court of Pakistan. Rather, the Court concluded, in paragraph 15, that "the respondent at the relevant time being attached to a portion of Pakistan Army which was on 'active service' by virtue of the notification issued by the Federal Government on 3-1-1975 under section 7 of the Act, will be deemed to be a person subject to the Act and as such he was amenable to the jurisdiction of F G C M" (*Khurshid Ahmed*, 1999 SCMR 664, p. 687). The judgment therefore rests upon a statutory reading of the Act and not upon any imported constitutional interpretation from Indian precedent.

58. In light of the above, this Court finds that the adjudicatory authority exercised by Military Courts over civilians, when narrowly defined and legislatively prescribed, does not infringe the constitutional doctrine of separation of powers. Article 175(3) is not offended by the existence or operation of Military Courts within their legal remit. The impugned judgment erred in concluding otherwise.

59. This question concerns whether the existing appellate structure under the Pakistan Army Act, 1952, particularly sections 133 and 133-B, satisfies the constitutional guarantees of a fair trial and due process under the Constitution, and whether an independent statutory right of appeal to the High Courts for civilians tried under the Army Act is constitutionally mandated.

The impugned judgment declared the relevant provisions of the Army Act ultra vires, partly on the ground that the existing appellate mechanism does not provide an independent judicial forum external to the military hierarchy. The conclusion that the provisions must be struck down in their entirety was not inevitable. The issue necessitates a doctrinally nuanced analysis that distinguishes between the formal availability of procedural safeguards and their institutional adequacy.

60. There is no dispute that the Army Act incorporates procedural protections that reflect conventional norms of criminal justice. Sections 133 and 133-B provide for internal appellate review mechanisms of court-martial convictions. The learned counsel for the appellants rightly pointed out that these provisions afford the accused certain procedural entitlements, including notice of charges, the right to legal representation, the opportunity to cross-examine witnesses, and multi-tiered review. These features were held by this Court in *F.B. Ali v. The State* (**PLD 1975 SC 506**), *Shahida Zahir Abbasi v. President of Pakistan* (**PLD 1996 SC 632**), and *District Bar Association Rawalpindi v. Federation of Pakistan* (**PLD 2015 SC 401**) to satisfy, in substance, the baseline requirements of due process.

61. Nevertheless, this procedural compliance must now be assessed in light of constitutional evolution and Pakistan's international commitments. While Article 10A of the Constitution does not apply in this context due to the express exclusion under Article 8(3)(a), it remains relevant as a constitutional expression of fair trial norms. Though not enforceable as a fundamental right in military contexts, Article 10A illustrates the broader constitutional vision of justice.

More crucially, Article 4 of the Constitution, which applies universally and guarantees that every individual shall be treated in accordance with law, operates as a procedural due process clause and provides a firmer constitutional anchor for evaluating fairness in military proceedings involving civilians.

62. This obligation is further reinforced by Article 14(5) of the ICCPR, to which Pakistan is a State party, mandating that all persons convicted of a criminal offence shall have the right to their conviction and sentence being reviewed by a higher tribunal according to law. The judiciary must thus ensure that the military justice system incorporates at least a minimum content of procedural fairness consistent with these normative sources, particularly when applied to civilians.

However, as recognised in the present appellate proceedings, procedural protections in statute and their effective application in practice are not synonymous. It is one thing for a law to contain provisions that mirror due process standards; it is another for those protections to be dispensed by a forum possessing the structural and institutional independence necessary to meet the standards of constitutional justice.

63. Although Article 10A of the Constitution does not apply directly to the Pakistan Army Act due to the exclusion provided by Article 8(3)(a), the minimum standards of fairness and procedural justice are nonetheless embedded within Article 4 of the Constitution, which affirms that every individual shall be dealt with in accordance with law. These standards also find reinforcement in Pakistan's international obligations under Article 14 of the International Covenant on Civil and Political Rights (ICCPR), which mandates that persons charged with criminal offences must have the right to a fair hearing by a competent, independent, and impartial tribunal established by law.

64. In this interpretive context, Article 10A, though inapplicable as an enforceable right under Article 8(3)(a), offers useful guidance on what constitutes a fair trial. It reflects the constitutional vision of justice that, while not directly binding in this instance, serves as a normative compass. Therefore, trials under the Army Act, though constitutionally placed outside the formal fundamental rights regime, must nevertheless adhere to the core elements of procedural fairness as articulated under Article 4 and the ICCPR.

65. It is expansively evident from the impugned judgment, including the additional note, that during the original proceedings, the learned Attorney General for Pakistan repeatedly sought time to obtain instructions from the Government on the question of introducing a statutory right of appeal for civilians tried under sub-clauses (i) and (ii) of clause (d) of section 2(1) read with section 59(4) of the Army Act. Even in the concluding session on 5 May 2025, the learned Attorney General reiterated that if this Constitutional Bench refers the matter to

the Government or Parliament to amend the law and create a window of an independent right of appeal over and above the provision of appeal already provided under section 133-B of the Pakistan Army Act, 1952, such recommendation will be respected and seriously considered. In support of this position, reliance was placed upon the decision of this Court in *Jurist Foundation v. Federation of Pakistan* (**PLD 2020 SC 1**), which affirmed that the legislature may be given an opportunity to cure constitutional defects through targeted statutory reform.

66. In light of this record, the appropriate constitutional response is not to strike down the existing provisions outright but to acknowledge that, while the Army Act provides basic procedural due process in form, it lacks the structural guarantees necessary for a fair appellate forum in the case of civilians. Therefore, the legislative framework must be supplemented to provide for an independent right of appeal to the High Courts for civilians convicted under the said provisions.

67. This approach is consistent with the principle articulated in *Benazir Bhutto v. Federation of Pakistan* (**PLD 1988 SC 416**), which supports constitutional development through measured judicial engagement and legislative correction. It also aligns with the conclusion of the present judgment, which restores the impugned provisions subject to a legislative reference for the creation of an independent appellate forum within a defined period.

68. Accordingly, it is held that while the procedural framework under the Army Act includes formal due process protections, the absence of an independent right of appeal to a civilian court renders its application to civilians constitutionally incomplete. The provisions are not inherently unconstitutional, but this deficiency requires legislative intervention. This Court therefore refers the matter to Parliament for the enactment of appropriate amendments, with the expectation that such institutional deference will be accorded due respect. The Government and Parliament are urged to undertake the necessary amendments or enact suitable legislation in the Pakistan Army Act, 1952, and allied rules within a period of 45 days to provide an

independent right of appeal in the High Courts against convictions rendered by Court Martial or Military Courts in respect of offences under sub-clauses (i) and (ii) of clause (d) of subsection (1) of section 2, read with subsection (4) of section 59 of the Pakistan Army Act, 1952. The question is answered in favour of the appellants, subject to the need for statutory reform to provide an external appellate forum for civilians.

69. These are the reasons for short order dated 07.05.2025 which is reproduced as under:-

“The aforesaid Intra Court Appeals (ICA) have been brought under Section 5 of the Supreme Court (Practice and Procedure) Act, 2023 to challenge the judgment dated 23.10.2023 passed by the learned Bench of this Court in Constitution Petition Nos.24, 25, 26, 27, 28 & 30 of 2023, filed under Article 184 (3) of the Constitution of the Islamic Republic of Pakistan, 1973 (“Constitution”), whereby the Court, by majority (4 to 1), declared that clause (d) of subsection (1) of Section 2 of the Pakistan Army Act, 1952 (in both of its sub clauses (i) & (ii)) and subsection (4) of Section 59 of the said Act are *ultra vires* the Constitution and of no legal effect. It was further declared that the trials of civilians/accused (around 103 persons) and all other persons who are now, or may at any time be, similarly placed in relation to the events arising from and out of the 9th and 10th May, 2023, shall be tried by Criminal Courts of competent jurisdiction established under the ordinary and or special law of the land. However, Mr. Justice Yahya Afridi (present CJP) recorded his dissent to the majority judgment and abstained from declaring clause (d) of subsection (1) of Section 2 of the Pakistan Army Act, 1952 (in both of its sub clauses (i) & (ii)) and subsection (4) of Section 59 of the said Act, *ultra vires* the Constitution. On the other hand, he concurred and joined with the other members of the Bench that the accused persons, in relation to the events arising from and out of 9th and 10th May, 2023 shall be tried by Criminal Courts of competent jurisdiction established under the ordinary and/or special laws.

2. After providing extensive opportunity of hearing to all concerned and for reasons to be recorded later, subject to augmentation and explication in detail, the aforesaid ICA(s) are allowed by majority of 5 (comprising J. Amin-ud-Din Khan, J. Muhammad Ali Mazhar, J. Syed Hasan

Azhar Rizvi, J. Musarrat Hilali, and J. Shahid Bilal Hassan) in the following terms:

- i. The impugned judgment is set aside and as a consequence thereof, sub- clauses (i) & (ii) of Clause (d) of subsection (1) of Section 2 of the Pakistan Army Act, 1952 and subsection (4) of Section 59 of the Pakistan Army Act, 1952 are restored. With due deference to the impugned judgment, such provisions in our view could not be declared *ultra vires* on the anvil or bedrock of sub-article 5 of Article 8 of the Constitution which only provides that the rights conferred by the said Chapter (Fundamental Rights) shall not be suspended except as expressly provided by the Constitution, thus it does not control or preponderate upon the rigors of sub-article 3 of the said Article. There was, in fact, no question with regard to the suspension of any fundamental right involved within the sphere of influence or realm of Article 233 of the Constitution.
- ii. According to statistics shared by the learned AGP during the course of his arguments, 39 military installations, Army works/establishments at various places (23 in Punjab, 08 in KPK, 07 in Sindh and 01 in Balochistan) including GHQ, Core Commander House, Lahore (which is also a camp office), Mianwali Air Base, and ISI Offices/set up in Sargodha, Faisalabad, and Rawalpindi were targeted/attacked on 09.05.2023. He further argued that all attacks were made by design and occurred on one and the same day, within a span of 4 to 6 hours, across the country. According to him, these incidents left an indelible mark and represented the darkest moments in the nation's history. As a result of these events, several First Information Reports (FIRs) were lodged at various Police Stations. He further argued that on account of dereliction of duty, stern disciplinary actions were also taken against several army officials. Additionally, the attack on the Core Commander House, Lahore, rendered the command dysfunctional for at least 4 to 5 hours, creating a highly dangerous situation. All fundamental rights enshrined and envisaged under the Constitution are subject to reasonable restrictions imposed by the law. Peaceful assembly, association, or public demonstration/protest within the bounds and precincts of reasonable restrictions imposed by the law is not prohibited but without violating or breaking the law, or taking the law in one's hands.
- iii. The learned counsel representing the respondents never refuted or denied the factum of such incidents but they candidly and forthrightly argued, from beginning to end,

that though the accused/convicts have committed offences, they should be tried by Anti-Terrorism Courts and not through Court Martial or by Military Courts, as this violates the right to a fair trial as envisioned under Article 10-A of the Constitution, and under sub-article (3) of Article 175 of the Constitution, Military Courts cannot exercise judicial functions in the cases of civilians (the argument with regard to the applicability of sub-article (3) of Article 175 of the Constitution was also raised in the original proceedings but not approved or accepted in the majority impugned judgment). Whereas, the learned counsel for the appellants maintained that due to the striking down of the law in question, no action can be taken even against the hardcore criminals and terrorists involved in the attacks on army installations and/or against the martyrdom of innocent civilians and personnel of the armed forces and even in the present situation, no action can be taken in the national security and interest against the persons accused of espionage or spies of enemy countries for the offences mentioned in sub-clause (ii) of clause (d) of subsection (1) of Section 2 of the Pakistan Army Act, 1952.

- iv. No doubt, all such miscreants, lawbreakers, and perpetrators of such incidents are liable to be punished on proving their guilt, subject to right of appeal against their conviction. An independent right of appeal before an independent forum is also a basic limb of the doctrine of due process and the right to a fair trial, as enshrined and envisioned under Article 10-A of the Constitution. Various provisions were vigorously highlighted by the learned counsel for the appellants to demonstrate that under the Pakistan Army Act, 1952 ("Army Act"), and the Rules framed thereunder, the right to a fair trial and due process is fully protected and safeguarded and the process of trial under the Army Act is compliant with the recognized principles of criminal justice as held in the cases of Brig. (Retd.) F. B. Ali (PLD 1975 SC 506), Shahida Zahir Abbasi (PLD 1996 SC 632), and the judgment rendered in the case of District Bar Rawalpindi (PLD 2015 SC 401). It was further averred that clause 2 (d) was inserted into the Army Act *vide* Section 2 of the Defence Services Laws Amendment Ordinance, 1967, which is protected under Article 268 of the Constitution. The learned AGP also asserted that the right to a fair trial, as enshrined under Article 10-A of the Constitution, and due process of law, was available to all such accused persons of the 9th and 10th May incidents, despite the exactitudes of Article 8 (3) of the Constitution.

- v. In the case of Shahida Zahir Abbasi (*supra*), it was held that “the rules of procedure applicable for trial of a person in a criminal case before a Military Court do not violate any accepted judicial principle governing trial of an accused person (...) the procedure prescribed for trial before Military Courts is in no way contrary to the concept of a fair trial in a criminal case”. Likewise, the judgment in plurality rendered in the District Bar Association case (*supra*) held with reference to Article 8 of the Constitution that the “Court Martial are constituted and established under the Pakistan Army Act, 1952, and jurisdiction thereupon is also conferred by the said Act. Their existence and validity is acknowledged and accepted by the Constitution in so far as they deal with the members of the Armed Forces and other persons subject to the said Act. This has not been disputed before us”. In the same case, the plurality judgment also refers to the case of Col. (R) Muhammad Akram v. Federation of Pakistan through Secretary Ministry of Defence, Rawalpindi and another (**PLD 2009 FSC 36**), where the “provisions of the Pakistan Army Act were scrutinized by the Federal Shariat Court (...) and generally passed muster”.

- vi. In our view, the provisions merely accentuating the right to a fair trial and due process in any statute and its actual application and proper implementation during the trial are two distinct features and situations. If an independent right of appeal is provided in the High Court for challenging the original order or internal departmental appellate order of conviction, then obviously, the High Court in exercise of its appellate jurisdiction as conferred under the provisions of the Code of Criminal Procedure, 1898, may examine whether an equal and fair opportunity to defend the charges was afforded to the convict, whether sufficient evidence was available to substantiate the charges, and whether proper procedure in the trial was followed in letter and spirit.

- vii. It is expansively evident from the impugned judgment, including the additional note, that during the original proceedings, the learned AGP, time and again, requested for time to seek instructions from the government on whether an independent right of appeal may be provided to the persons not otherwise subject to the Army Act, who are accused of the offences of (i) seducing or attempting to seduce any person subject to this Act from his duty or allegiance to Government, or (ii) having committed in relation to any work of defence, arsenal, naval, military or air force establishment or station, ship or aircraft or otherwise in relation to the naval, military or air force

affairs of Pakistan, an offence under the Official Secrets Act, 1923 as provided under clause (d) of Section 2 (1) of Army Act, and even in the concluding session on 5th May, 2025, the learned AGP reiterated that if this Constitutional Bench refers the matter to the Government/Parliament to amend the law and create a window of an independent right of appeal over and above the provision of appeal already provided under Section 133-B of the Pakistan Army Act, 1952, that will be respected and considered seriously. In support of this contention, he also cited the judgment of this Court rendered in the case of Jurist Foundation versus Federal Government (PLD 2020 SC 1).

- viii. While restoring the provisions of Army Act, that were struck down by means of the impugned judgment in the original proceedings before this Court, we, in unison, sensitize the need of legislative changes, which will also be compliant to the requirements laid down under the International Covenant on Civil and Political Rights (ICCPR) for maintaining and preserving the constitutional and societal norms in the existing legal framework. Therefore, the matter is referred to the Government/Parliament for considering and making necessary amendments/legislation in the Pakistan Army Act, 1952, and allied Rules within a period of 45 days in order to provide an independent right of appeal in the High Court against the conviction awarded to the persons by the Court Martial/Military Courts under sub-clauses (i) & (ii) of Clause (d) of subsection (1) of Section 2 of the Pakistan Army Act, 1952, read with sub-section (4) of Section 59 of the Pakistan Army Act, 1952.
- ix. Subject to clause (viii) of this Short Order, the limitation period for filing an appeal by the convicts against their conviction before the High Courts shall be reckoned and applied from the date of notifying the amendments under the Pakistan Army Act, 1952, and their conviction shall be subject to the final outcome/decision in appeal by the High Court.
- x. All pending Civil Misc. Applications are also disposed of accordingly.
- xi. It is clarified that the individual cases/writ petitions, if pending or filed in the High Courts for challenging the *vires* of orders passed by the Anti-Terrorism Courts, allowing the transfer of case/custody of any accused to the Military Court for trial, shall be decided by such Courts on its own merits.
- xii. Office is directed to transmit the copy of this Short Order to the learned Attorney General, Secretary General

National Assembly, Secretary Ministry of Law & Justice, Secretary Ministry of Defence, and Secretary Law & Justice Commission, Government of Pakistan, for ensuring compliance.

Order of the Court

By majority of 5 (comprising Justice Amin-ud-Din Khan, Justice Muhammad Ali Mazhar, Justice Syed Hasan Azhar Rizvi, Justice Musarrat Hilali, and Justice Shahid Bilal Hassan), the Intra Court Appeal No.5/2023 and other connected appeals are allowed and the impugned judgment, dated 23.10.2023, rendered by the learned Bench of this Court in Constitution Petition Nos.24, 25, 26, 27, 28 & 30 of 2023 is set aside. Whereas, Justice Jamal Khan Mandokhail and Justice Naeem Akhter Afghan dismissed the aforesaid Intra Court Appeals.”

NOTE:

C.P.No.35 of 2023 was also fixed along with the connected petitions i.e. C.P.No.24 of 2023, etc. and as per the short order dated 23.10.2023 it was also decided. Record shows that subsequently an order was passed by the five-member Bench on 11.01.2024 that this petition be detached from the aforesaid bunch and it shall be deemed to be still pending. Later on, the office fixed C.P.No.35 of 2023 along with the connected appeals before the Appellate Bench for hearing on 10.12.2024 when following order was passed:

“When confronted the learned counsel that how it is a pending matter when under the judgment passed by a five-member bench of this Court in Constitution Petition No. 24/2023 (‘C.P.No.24/2023’), etc decided vide order dated 23.10.2023 whereby the instant petition was also mentioned as decided matter, the learned counsel states that the bench has separated this matter. Though the Federation has filed ICA No. 12/2023 which is also pending alongwith other appeals filed against C.P.No.24/2023, etc, and this petition is no more pending before this Court as the order of this Court passed in C.P.No.24/2023, etc. dated 23.10.2023 was never reviewed. In this view of the matter, the office is directed to annex the file of this case as decided matter alongwith ICA No.12/2023.”

Though no one has filed review against the order dated 10.12.2024 but the record shows that the order is incorrect. Therefore order is corrected in the way that C.P.No.35 of 2023 has not been decided so far, therefore, no question of filing and hearing of appeals, hence, the appeals filed there-against i.e. ICAs No. 12 and 15 of 2023 are disposed

of being not maintainable. Office to fix C.P.No.35 of 2023 for hearing before the appropriate Constitutional Bench.

**Justice Amin-ud-Din Khan
Senior Judge**

Justice Jamal Khan Mandokhail

(I respectfully disagree. I have already released my dissenting note.)

Justice Muhammad Ali Mazhar

(My concurring judgment is also attached.)

Justice Syed Hasan Azhar Rizvi

(I have already concurred with the judgment of Justice Muhammad Ali Mazhar.)

Justice Musarrat Hilali

Justice Naeem Akhter Afghan

(I respectfully disagree. I have already concurred with the dissenting note of my learned brother Judge, Justice Jamal Khan Mandokhail.)

Justice Shahid Bilal Hassan

Islamabad, the
18.8.2025

Approved for reporting.

Mazhar Javed Bhatti/Maira Hassan, LC.